

Collective Agreement

**Ontario Public Service Employees Union
on behalf of its Local 256**

and

The Corporation of the County of Brant

**Full-time and Part-time
Paramedic Employees**

DURATION: April 1, 2020 – March 31, 2023



**Sector 1
2-256-5173-20230331-1**

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COLLECTIVE AGREEMENT

BETWEEN:

THE CORPORATION OF THE COUNTY OF BRANT
(Hereinafter called the "Employer")

- and -

**THE ONTARIO PUBLIC SERVICE EMPLOYEES UNION
and its Local 256**
(Hereinafter called the "Union")

PREAMBLE

WHEREAS it is the desire of both Parties to this Agreement:

- (1) To maintain and improve harmonious relations and settled conditions of employment between the Employer and the Union;
- (2) To recognize the mutual value of joint discussions and negotiations in all matters pertaining to working conditions;
- (3) To encourage efficiency in operation;
- (4) To promote the morale, well-being and security of all employees in the Bargaining Unit.

WHEREAS it is now desirable that methods of bargaining and all matters pertaining to the working conditions of the employees be drawn up in a Collective Agreement.

NOW THEREFORE, the Parties agree as follows:

ARTICLE 1 – RECOGNITION

- 1.01 The Employer recognizes the Ontario Public Service Employees Union (The Union) as the sole and exclusive bargaining agent for all paramedic employees of The County of Brant Ambulance Service, save and except, supervisors and persons above the rank of supervisor.

ARTICLE 2 – RELATIONSHIP

- 2.01 The parties hereto mutually agree that any employee of the Employer covered by this Agreement shall, as a condition of employment, become a member of the Union.
- 2.02 The Employer and the Union agree that there will be no intimidation, discrimination, interference, restraint, or coercion exercised or practised by either of them or by any of their representatives or members. Particularly, there shall be no discrimination against employees with respect to terms and conditions of employment on the grounds of age, ancestry, colour, race, citizenship, ethnic origin, place of origin, creed, disability, family status, marital status (including single status), gender identity, gender expression, receipt of public assistance (in housing only), record of offences (in employment only), sex (including pregnancy and breastfeeding) and sexual orientation, Union membership or activity.

The parties will negotiate accommodation measures to eliminate discrimination, provided that the accommodation does not cause undue hardship on either party as defined in the *Ontario Human Rights Code*.

Where an employee has submitted appropriate medical documentation, he may be accommodated by riding third on a car in order to maintain his/her skill level.

In all cases employees on accommodation will be provided meaningful work within their skills and abilities.

- 2.03 It is agreed that the Union and the employees will not hold meetings at any time on the premises of the Employer without the permission of the Employer.

The Employer will provide a bulletin board at each station for use by the Union for the purpose of posting Union notices, publications and correspondence, which shall be signed and dated by the Union Steward.

- 2.04 The Employer agrees that new employees in the Bargaining Unit will be advised as to the names of the Stewards. A representative of the Union shall be given the opportunity, upon request to the manager for permission, which permission shall not be unreasonably withheld, to interview each new employee at such station, within regular working hours, without loss of pay to the representative, or to the

new employee, for a maximum of thirty (30) minutes during the first thirty (30) days of employment, for the purpose of acquainting the new employee with the benefits and duties of the Union membership, and his/her responsibilities and obligations to the Union. Such interview must not interfere with the normal schedule of operations or response time.

ARTICLE 3 – MANAGEMENT RIGHTS

- 3.01 The Union recognizes and acknowledges that the Management of the stations and direction of the working force are fixed exclusively in the Employer, and without restricting the generality of the foregoing the Union acknowledges that it is the exclusive function of the Employer to:
- (a) Maintain order and efficiency;
 - (b) Hire, promote, classify, transfer, suspend and rehire employees, and to discipline or discharge any employee for just cause, provided that a claim by an employee that he has been discharged or disciplined without just cause may be the subject of a grievance and dealt with as hereinafter provided;
 - (c) Make, enforce and alter, from time to time, rules and regulations to be observed by the employees. The Employer agrees to supply the Local Union with copies of any changes in rules and regulations within seven (7) days of the posting of such changes and the Union may then request a consultation regarding same. Except in the case of Ministry of Health or corporate directives, this consultation shall take place before changes are implemented, providing however, that such consultation shall not affect the validity of the rule. All new or amended Policies and Procedures, notices and memos will be dated and signed by the Employer prior to posting and send out via email;
 - (d) Determine the nature and kind of business conducted by the Employer, the kinds and locations of stations, equipment and materials to be used, the control of materials and parts, the methods and techniques of work, the content of jobs, the work schedules, the number of employees to be employed, the extension, limitations, curtailment, or cessation of operations or any part thereof, and to determine and exercise all other functions and prerogatives which shall remain solely with the Employer except as specifically limited by the express provisions of this Agreement.
- 3.02 In the exercise of its functions as provided for in this Article or otherwise, the Employer shall act reasonably, fairly, and in good faith, in a manner consistent with the Collective Agreement

ARTICLE 4 – UNION-MANAGEMENT COMMITTEE

- 4.01 A Union-Management Committee shall be established consisting of three (3) representatives of the Employer and three (3) representatives of the Union including the Unit Steward. The Committee shall enjoy the full support of both parties in the interest of maximum service to the public.
- 4.02 The Committee shall concern itself with the following general matters:
- (1) Considering constructive criticism of all activities so that better relations shall exist between the Employer and employees;
 - (2) Operation efficiency;
 - (3) Improving service to the public;
 - (4) Promoting safety and sanitary practices;
 - (5) Reviewing suggestions from employees, questions of working conditions and service (but not grievances concerned with service);
 - (6) Correcting conditions making for grievances and misunderstandings;
 - (7) Reviewing new job descriptions and classifications in the Bargaining Unit.

The Committee shall determine meeting dates every January and may meet at a mutually agreeable place once every three (3) months. Members shall receive a notice of the meeting and agenda at least two (2) weeks in advance of such meeting. Members of the Committee shall be entitled to submit new items under new business.

The Union-Management Committee shall have no authority to change, delete or modify any terms of the Collective Agreement or to settle grievances arising under this Agreement.

ARTICLE 5 – UNION REPRESENTATION

- 5.01 The Employer acknowledges the right of the Union to appoint or otherwise select a Committee, which shall be composed of four (4) Stewards. All Stewards shall have completed their probationary period. The name and area of each of the Stewards shall be given to the Employer in writing and the Employer shall not be required to recognize any such Stewards until it has been so notified.
- 5.02 The rights of Stewards to leave work without loss of pay to attend to Union business is granted on the following conditions:

- (a) The time taken shall be devoted to prompt handling of necessary Union/Management relations;
 - (b) The Steward concerned shall obtain the permission of his/her supervisor before leaving his/her work, and shall report to his/her supervisor upon his/her return. If the Steward's supervisor is not available, he may deal with a supervisor who is available;
 - (c) The Employer reserves the right to limit such time if it deems the time so taken to be excessive.
- 5.03 The Employer agrees to recognize a Negotiating Team of three (3) members of the Bargaining Unit plus a paid representative of the Ontario Public Service Employees Union. Bargaining Unit members shall suffer no loss of pay for time spent in negotiations, including essential services negotiations, up to and including Conciliation. The Union may bring outside counsel to the table as required.
- Full-time Bargaining Unit members who attend negotiations on a regularly scheduled day off will be granted an alternate day off with pay.
- Part-time Bargaining Unit members who attend negotiations up to and including conciliation will be paid for twelve (12) hours for each day in attendance.

ARTICLE 6 – GRIEVANCE PROCEDURE

- 6.01 The parties to this Agreement are agreed that it is of the utmost importance to adjust complaints and grievances concerning the interpretation or alleged violation of the Agreement as quickly as possible.
- 6.02 No grievance shall be considered where the events giving rise to it occurred or originated more than ten (10) calendar days before discussing the grievance. In the case of a pay grievance, this period shall be ten (10) calendar days from the date of the pay cheque, which is questioned.
- 6.03 In order to provide an orderly and speedy procedure for the settling of grievances, the Employer acknowledges the right of the Union, as set out in Article 5, to appoint or elect Stewards whose duties shall be to assist any employee in preparing and in presenting his/her grievances in accordance with the grievance procedure. However, nothing contained in this Agreement shall be deemed to deprive any employee of his/her right to settle any grievance without the assistance of the Union if he so desires.

No employee shall be required or permitted to make any written or verbal agreement with the Employer or its representative(s) which conflicts with the terms of this Agreement.

6.04 Step 1 – Verbal

The aggrieved employee and/or his/her Steward shall present his/her grievance verbally to his/her supervisor. The supervisor shall give his/her decision within ten (10) calendar days following the presentation of the grievance to him. If the supervisor's decision is not satisfactory to the employee concerned, then a written grievance may be presented as follows:

Step 2 – Director

Within ten (10) calendar days after the decision is given at the written Step 1 above, the aggrieved employee and/or his/her Steward may submit his/her grievance in writing to the Director, or such person as the Director may designate and the employee and his/her Steward shall meet as promptly as possible with such persons as the Director may desire, to consider the grievance. At this stage they may be accompanied by a full-time representative of the Union if either party requests his/her presence. The Director, or such person as the Director may designate, will render his/her decision in writing within ten (10) calendar days following such meeting.

Step 3 – C.A.O.

Within ten (10) calendar days after the decision is given at Step 2 above, the aggrieved employee and/or his/her Steward may submit his/her grievance to the C.A.O., or such person as the C.A.O. may designate and the employee and his/her Steward shall meet within ten (10) calendar days with such persons as Management may desire, to consider the grievance. At this stage they may, be accompanied by a full-time representative of the Union if either party requests his/her presence. The C.A.O., or such person as the C.A.O. may designate, will render his/her decision in writing within ten (10) calendar days following such meeting.

- 6.05 If final settlement of the grievance is not reached at Step 3, then the grievance may be referred in writing by either party to Arbitration as provided in Article 7, at any time within twenty-one (21) calendar days after the decision is given under Step 3 but not later.

6.06 Group Grievance

Any complaint or grievance concerning or affecting a group of employees shall be originated under Step 2 of the grievance procedure. A group grievance is defined

as a complaint that affects more than one (1) employee in the same fact situation. The grievance presented shall identify each employee who is grieving.

6.07 Policy Grievance

A Policy Grievance is hereby recognized whereby either party to this Agreement may submit a matter in dispute between them involving the interpretation or application of the Collective Agreement to a grievance beginning at Step 3 of the grievance procedure provided this is submitted within ten (10) calendar days of the event which is being grieved. However, a Union policy grievance shall not include a matter or matters which an employee is entitled to grieve as a personal grievance.

6.08 Extension of Time Limits

By mutual agreement of the Employer and the Union, the time limits stated in the grievance procedure may be extended; however, such agreement must be confirmed in writing and the parties agree that the time limit extensions will not be unreasonably denied. The time limits set out in this Article are mandatory and failure to comply shall result in the grievance being deemed to have been abandoned.

ARTICLE 7 – ARBITRATION PROCESS

7.01 Mediation/Arbitration Process

- (1) The parties to the Collective Agreement may, at any time, agree to refer one or more grievances under the Collective Agreement to a single mediator/arbitrator for the purpose of resolving the grievances in an expeditious and informal manner.
- (2) The parties shall not refer a grievance to a mediator/arbitrator unless they have agreed upon the nature of any issues in dispute.
- (3) A mediator/arbitrator appointed under the above Article shall begin proceedings within forty-five (45) days of referral to mediation/arbitration, unless, a later date is agreed to by the parties.
- (4) The mediator/arbitrator may adopt such procedures as are necessary to allow an expeditious resolution of the issue in dispute. Decisions by a mediator/arbitrator may be made in such a manner as the mediator/arbitrator chooses; however, a written decision shall be made at the request of either party.

- (5) In every such case, the mediator/arbitrator shall issue a written decision no later than twenty (20) days from the date of the hearing.

7.02 Arbitration Process

The parties agree that any dispute or grievance concerning the interpretation or alleged violation of this Agreement, which has been carried through all the steps of the grievance procedure outlined in Article 6 above, and which has not been settled or referred to the mediation/arbitration process, may be referred to arbitration at the request of either of the parties hereto in accordance with Article 6.05 herein.

- 7.03 The party referring the grievance to arbitration shall propose to the other party its suggestions for a sole arbitrator at the time of the referral. If there is no agreement, the other party shall propose its suggestions for sole arbitrator.
- 7.04 In the event the parties do not agree on a sole arbitrator within fourteen (14) days of the referral, either party may request the Minister of Labour to appoint a sole arbitrator.
- 7.05 The decision of the arbitrator shall be binding on the parties subject to any judicial review.
- 7.06 The parties shall share equally the fees and expenses of the arbitrator.
- 7.07 The arbitrator shall not have any power to alter or change any of the provisions of this Agreement or to substitute any new provisions for any existing provisions, nor to give any decisions inconsistent with the terms and provisions of this Agreement.

ARTICLE 8 – DISCIPLINE/DISCHARGE CASES/INCIDENTS

- 8.01 A claim by an employee that they have been discharged without just cause shall be treated as a grievance if a written statement of such grievance is lodged with the C.A.O. at Step 3 of the grievance procedure within fourteen (14) days after the employee ceased working for the Employer.

Such special grievance may be settled by:

- (a) Confirming the Management's action in dismissing the employee; or
- (b) Reinstating the employee with full compensation for time lost; or
- (c) Any other arrangement, which is just and equitable in the opinion of the conferring parties or the Board of Arbitration.

- 8.02 When an employee has been dismissed without notice, he shall have the right to interview his/her Steward for a reasonable period of time before leaving the Employer's premises. Failure to do so will not void the discharge.
- 8.03 An employee shall be notified in writing of any complaint, as described below, concerning his/her work within fourteen (14) days of the complaint. This notice shall outline in brief the particulars of the work performance, which led to the complaint. The employee's written reply to such complaint shall become part of his/her record. If this procedure is not followed, such complaint shall not become a part of the employee's record for use against him at any time. This applies with respect to the conduct of an employee, in the event of complaints by persons outside the Employer such as an outside agency, the media, or a member of the public.
- 8.04 When a supervisor feels it is necessary to reprimand an employee and where such reprimand may result in the demotion, suspension or dismissal of the employee or any reprimand which shall be attached to the employee's Human Resources file, the reprimand shall be made in private and the employee being reprimanded will be offered Union representation if he/she so desires. In the event an employee chooses not to have Union representation a waiver will be signed off by the employee.
- Disciplinary action on the employee's file will be removed after the employee has achieved a period of eighteen (18) consecutive months free of related discipline.
- 8.05 In matters of discipline involving a written reprimand, suspension or discharge, the Employer shall provide notification in writing of such discipline to the Unit Steward as soon as possible within two (2) calendar days of such discipline. Failure to provide such notification will not void the discipline.
- 8.06 The Employer will deal with discipline issues in a timely manner.
- 8.07 Where an employee is suspended during an investigation for an alleged misconduct, the period of investigation shall be with full pay, benefits and credits. It should be noted that any resulting disciplinary suspension would be without pay.
- 8.08 If an investigation requires an employee to rewrite EMCA exams as an outcome of an investigation and he/she fails, the employee will be allowed the same rights and opportunities as outlined in Article 11.07 Decertification.
- 8.09 **Incident Reports**
- (a) The Employer will acknowledge incident reports prepared by a paramedic within fifteen (15) working days of receipt of such report.

ARTICLE 9 – NO STRIKES/NO LOCKOUTS

9.01 The Union agrees there shall be no strikes and the Employer agrees there shall be no lockouts so long as this Agreement continues to operate. The terms “strike” and “lockout” shall bear the same meaning given them in the *Ontario Labour Relations Act*.

ARTICLE 10 – SENIORITY

10.01 Seniority, as referred to in this Agreement, shall mean length of continuous service in the employ of the Employer as a paramedic or in the employ of another employer, as a paramedic whose operations have been purchased or assumed by the Employer and shall be used in accordance with the terms of this Agreement, in determining preference or priority for vacation selection, promotions, lay offs and recall. Seniority shall be on an Employer-wide basis as a paramedic.

10.02 An employee will be considered on probation for the first six (6) months of his/her employment. After six (6) months service, his/her seniority shall date back to the day on which his/her employment began. The dismissal of a probationary employee for failure to meet the requirement of the job, lay off, or recall after lay off of a probationary employee shall be at the Employer's discretion and is not subject to the grievance procedure. The Employer may grant an extension of the probationary period where the employee has not had an adequate opportunity to meet the requirements of the job.

10.03 Seniority lists will be revised each six (6) months. A copy of the list will be posted in each station and a copy given to the Unit Steward, and any employee on leave. If an employee does not challenge the position of his/her name on the seniority list within two (2) months from the date his/her name first appears on the seniority list, then he shall be deemed to have proper seniority standing.

10.04 In the case of a promotion (other than promotions outside the Bargaining Unit) and demotions (other than disciplinary demotions), the following factors shall be considered:

- (a) Seniority;
- (b) Ability and qualifications;

Where, in the opinion of the Employer the factors in (b) are relatively equal for the job in question, factor (a) seniority, shall govern. In the exercise of its opinion, the Employer shall not act in an arbitrary or discriminatory fashion, in keeping with the provisions of the *Ontario Human Rights Code*.

Post probationary part-time employees are deemed to possess the ability and qualifications to perform full-time work in their classifications.

10.05 Subject to Article 10.06, seniority shall accumulate in the following circumstances only:

- (a) When off work due to lay off, seniority shall continue to accumulate for a period of time equal to eighteen (18) months;
- (b) When off work due to sickness or accident;
- (c) When off work due to personal leave of absence then seniority will continue to accumulate for up to twelve (12) calendar months of such leave;
- (d) When absent on vacation with pay or on a designated holiday;
- (e) When actually at work for the Employer as a paramedic;
- (f) When absent under the Union leave provisions of this Agreement;
- (g) When absent on pregnancy or parental leave.

10.06 Seniority shall terminate and an employee shall cease to be employed by the Employer when he/she:

- (a) Voluntarily quits his/her employment with the Employer;
- (b) Is discharged and is not reinstated through the grievance procedure or arbitration;
- (c) Is off work for any reason for a continuous period of twelve (12) months other than lay off in which case the continuous period referred to in this clause shall be eighteen (18) months, or where the employee is receiving weekly benefits from the Workplace Safety Insurance Board (WSIB) or under the Long Term Disability Plan in which case the continuous period referred to in this clause shall be twenty-four (24) months. It is understood that this clause is subject to the provisions of the *Ontario Human Rights Code*;
- (d) Fails to report for work within two (2) weeks after being notified by the Employer of recall;
- (e) Fails to return to work upon the termination of an authorized leave of absence unless there has been a mutually agreed upon extension of the leave of absence;

- (f) Accepts gainful employment while on a leave of absence without first obtaining the consent of the Employer in writing. This provision does not apply to any employee absent with leave due to accident, injury or illness;
 - (g) Is absent from work for two (2) consecutive shifts unless due to verified illness or unless such absence is approved by the Employer, provided the Employer does not act in bad faith in making its decision.
- 10.07 Seniority shall be retained but shall not accumulate when occupying a temporary or acting position outside the Bargaining Unit, or when assigned project or training work outside the Bargaining Unit, for a period of nine (9) months only. The employee shall continue to pay Union dues, and shall maintain the right to their Bargaining Unit position, during this nine (9) month period. Continuation of such assignment for more than nine (9) months shall result in the loss of all seniority.
- 10.08 It is agreed that the Employer may transfer an employee in a supervisory or confidential position beyond the scope of this Agreement into a vacant position within the scope of this Agreement within the six (6) month period after the promotion and he/she shall be given a seniority date equal to any seniority he/she had previously acquired in the Bargaining Unit. No full-time employee shall be displaced from his/her position as a result of this provision.
- 10.09 It shall be the duty of each employee to notify the Employer promptly of any change of address. Any notice required of the Employer shall be deemed to have been given if forwarded by registered mail to the employee at the last address of which the Employer had notice. The Employer shall notify the Union of any difficulties contacting an employee.
- 10.10 If an employee transfers from full-time status to part-time status or vice versa, seniority accumulated since August 29, 2000 shall be converted on the basis of one (1) year being equal to 2080 hours. In addition, any employee who was in the employment of the Employer on August 29, 2000 will be credited with accumulated seniority based on the Brant County Ambulance Service Limited seniority list, dated December 31, 1999.
- 10.11 No employee may be credited with more than 2080 hours per one (1) year seniority in any calendar year.
- 10.12 The Employer will post permanent and temporary job postings for ten (10) calendar days. A temporary job posting is any temporary vacancy which is expected to be greater than six (6) weeks. The following procedure will be followed:
- (a) The Director or designate will email all paramedic employees, identifying the permanent or temporary position and a copy of the posting will be faxed to all EMS stations to be posted.

- (b) It will be all employees; responsibility even if absent from work, to apply within ten (10) calendar days.
- (c) Employees will submit their application for the position in accordance with the posting.

10.13 The Employer agrees to provide the Unit Steward with a copy of each posting and the name of the successful applicant.

ARTICLE 11 – JOB SECURITY

11.01 In the event of a lay off of a full-time employee, employees shall be laid off in reverse order of their seniority, provided ability and qualifications are relatively equal to do the required work.

11.02 In the event of a permanent (long term) lay off, a full-time employee shall receive four (4) months of lay off notice or pay in lieu thereof. The notice period shall begin when the employee receives written notice. Copies of such notice will be provided to the Union Local. The employee is deemed to receive notice on the date written notice is given to him by hand or the date of registration, if given by registered mail. Permanent lay off is any lay off which is greater than one (1) month in duration.

11.03 Short Term Lay Off

In the event of a lay off of less than (1) month in duration but greater than one (1) shift in duration, it is agreed that a laid off full-time employee will have first access by seniority to any scheduled overtime and scheduled part-time work up to the normal weekly full-time hours of work or any other unscheduled hours that become available up to the normal weekly full-time hours of work.

Where a full-time employee is laid off for a period of more than one (1) shift but less than one (1) week due to unforeseen circumstances, beyond the Employer's control, the lay off may occur without notice and such employee may at his/her discretion:

- (a) Displace a more junior employee in a position for which he/she is qualified;
- (b) Choose to perform part-time work for the duration of the lay off;
- (c) Choose to utilize his/her vacation or banked credits;
- (d) Choose to accept the lay off.

11.04 The Employer agrees that no full-time P1 will be laid off or suffer a reduction in hours because of the Employer hiring a P2 externally.

11.05 Access to Part-time Hours

On lay off, a full-time employee will be offered first opportunity to work part-time hours up to his/her normal weekly hours of work provided he/she is willing to accept this work at the prevailing wage and benefit levels applicable to part-time employees and provided he/she is able and qualified to perform the work.

This opportunity applies for the duration of lay off as long as recall rights exist for the laid off employee. Any severance pay owed to such employee in the event of lay off is not payable for the duration of time during which the employee is accessing part-time hours under this provision. If the employee has not been recalled to full-time employment as of expiration of his/her recall rights, his/her severance pay entitlement will be based on the employee's entitlement to severance pay as a full-time employee and will be paid as of the expiration of recall rights. On payment of severance pay, any subsequent access to part-time employment is only on the mutual agreement of the Employer and employee.

11.06 Recall Rights

- (a) An employee shall have opportunity of recall from a lay off to an available opening, in order of seniority, provided he/she has the ability and qualifications to perform the work before such opening is filled on a regular basis under a job posting procedure. The posting procedure in the Collective Agreement shall not apply until the recall process has been completed.
- (b) An employee recalled to work in a different classification from which he/she was laid off shall have the privilege of returning to the position held prior to the lay off should it become vacant within twelve (12) months of being recalled.
- (c) The Employer shall not hire any new employee to perform work normally performed by Bargaining Unit employees while a Bargaining Unit member is on lay off with recall rights, and is able and qualified to perform the required duties of the position.
- (d) The Employer shall notify the employee of recall opportunity by registered mail, addressed to the last address on record with the Employer. The notification shall state the job to which the employee is eligible to be recalled. The employee is solely responsible for his/her proper address being on record with the Employer.
- (e) Employees on lay off shall be given preference for temporary vacancies, which are expected to exceed two (2) weeks. An employee who has been

recalled to such temporary vacancy shall not be required to accept such recall and may instead remain on lay off.

- (f) In the event of a lay off of an employee, the Employer shall pay its share of insured benefit premiums for the duration of the four (4) month notice period provided for in Article 11.02.
- (g) A person shall lose their recall rights if they do not accept the recall, and/or they fail to report for duty within two (2) weeks of receiving notice of recall, or are otherwise not recalled for a period of eighteen (18) months following lay off.

11.07 Decertification

A Paramedic II who is deactivated and/or decertified by base hospital, but retains certification in SAED and Symptom Relief skills will be allowed to work as a Paramedic I, on a temporary basis, for a maximum period of three (3) months, while endeavouring to obtain reactivation or re-certification by the end of the aforementioned three (3) month period, he/she will become a Paramedic I on a permanent basis provided there is a vacancy for this classification; or if there is no vacancy, he/she will become a part-time employee. If the employee is successful in obtaining the required re-certification and/or reactivation during the three (3) month period, he/she will return to Paramedic II status.

A Paramedic II who is deactivated and/or decertified by base hospital and does not retain certification in SAED and Symptom Relief skills will be assigned non-patient care duties for a maximum of a four (4) week period, during which time such employee is expected to obtain reactivation and/or re-certification by base hospital. If the employee has not obtained reactivation and/or re-certification within this four (4) week period, the employee may be suspended without pay for a maximum period of three (3) months, during which time the employee is expected to obtain the required re-certification and/or reactivation. If the employee has not obtained re-certification and/or reactivation in SAED and Symptom Relief by the end of the aforementioned three (3) month suspension period, the employee may be terminated. If the employee has only obtained SAED and Symptom Relief skills by the end of the aforementioned three (3) month period, the employee will become a Paramedic I on a permanent basis, provided there is a vacancy for this classification or if there is no vacancy, the employee will become a part-time employee. If the employee is successful in obtaining the required re-certification and/or reactivation during the three (3) month period, he/she will return to Paramedic II status. In extenuating circumstances the parties may mutually agree to extend the four (4) week period for obtaining reactivation and/or re-certification by base hospital.

A Paramedic I who is deactivated and/or decertified and who does not retain SAED and Symptom Relief skills will be assigned to non-patient care duties for a

maximum of a four (4) week period during which time such employee is expected to obtain reactivation and/or re-certification in SAED and Symptom Relief skills. If the employee has not obtained reactivation and/or re-certification in SAED and Symptom Relief skills within this four (4) week period, the employee may be suspended without pay for a maximum period of three (3) months during which time the employee must obtain reactivation and/or re-certification in SAED and Symptom Relief skills. If the employee has not obtained this reactivation and/or re-certification, the employee may be terminated. If the employee is successful in obtaining reactivation and/or re-certification during the three (3) month period, he/she will return to active duty as a Paramedic I. In extenuating circumstances the parties may mutually agree to extend the four (4) week periods for obtaining reactivation and/or re-certification in SAED and Symptom Relief Skills.

The Employer will communicate with base hospital to facilitate the training and recertification takes place within the stated time periods.

11.08 Benefits on Lay Off

In the event of a lay off of an employee, the Employer shall pay its share of insured benefits premiums for the duration of the four (4) month period provided for in Article 11.02.

In the event of a lay off of a full-time employee, the Employer shall pay its share of insured benefits premiums up to the end of the month in which the lay off occurs.

The employee may, if possible under the terms and conditions of the insurance benefits programs, continue to pay the full premium cost of a benefit or benefits for as long as he maintains recall rights. Such payment can be made through the payroll office of the Employer provided that the employee informs the Employer of his/her intent to do so at the time of the lay off, and arranges with the Employer the appropriate payment schedule.

11.09 Voluntary Exit Option

An employee who has not received notice of lay off may offer to be laid off in place of a more junior employee. The Employer retains the sole discretion to accept this offer. If the employee's offer is accepted he will be deemed to have been laid off on the date provided to the junior employee, or such earlier date as may be agreed, in which case notice of lay off is not applicable to the employee, but severance pay is so applicable.

11.10 Pay In Lieu

With mutual consent of the Employer, an employee who has received notice of lay off may resign and receive equivalent pay in lieu of notice in addition to any severance payment owed to the employee on lay off.

11.11 Retraining

Where with the benefit of internal retraining within the U.T.M., an employee who has either accepted the lay off or who is unable to displace any other employee, could be redeployed to a non-union U.T.M. position identified by the Employer. Such employee shall be credited with length of service upon successful completion of the probationary period subject to the Employer's non-union policies and procedures.

11.12 Expansion of the Employer

The Employer agrees to continue to recognize the Union and the Collective Agreement upon any expansion of the service within the U.T.M.

11.13 Transfer of Service and Seniority

Employees hired after August 29, 2000 from outside the Bargaining Unit shall not be able to transfer service or seniority from their former employer and shall be placed at the bottom of the seniority list.

11.14 Contracting Out Clause / Successor Rights

In the event that the ambulance service is contracted out to another provider, the Employer will ensure the subsequent provider offers employment to all full-time employees provided they have maintained their qualifications under the *Ambulance Act*. Further, the Employer recognizes the provisions of the *Labour Relations Act* regarding successor rights.

11.15 Classification Change Request

Employees who wish to change their status from ACP to PCP will submit their request in writing to the EMS Director. The Employer will take into account the operational needs of the service when considering these requests and these requests will not be unreasonably denied.

ARTICLE 12 – SUPERVISORS AND BARGAINING UNIT WORK

12.01 Supervisors and those above the rank of Supervisor will be able to continue their existing practice of performing Bargaining Unit work. Management performing Bargaining Unit work will share equally all ambulance calls and base duties, including stocking and cleaning of vehicles they use.

ARTICLE 13 – SEVERANCE

13.01 An employee with five (5) years of service shall be entitled to receive, on separation from employment, severance pay of one (1) week's pay per year of service, up to a maximum of twenty-six (26) weeks of pay. For the purposes of indefinite lay off only, employees will become eligible for severance pay after one (1) year of service.

13.02 A part-time employee who is entitled to severance pay pursuant to this provision will have "one (1) week's pay" for the purposes of the severance pay calculation determined as follows:

One (1) week's pay will be equal to the average number of regular non-overtime hours worked per week by the part-time employee over the fifty-two (52) week period prior to the date of separation of employment, multiplied by the regular non-overtime rate of pay applicable to such part-time employee at the time of separation from employment.

13.03 If, on separation from employment or indefinite lay off under this provision, an employee has continuous service which includes both part-time employment and full-time employment 2080 hours of part-time work will equal one (1) year of service for the purpose of determining the employee's overall length of service under this provision.

13.04 Such severance pay shall only be provided in cases of separation from employment due to:

- (a) Indefinite lay off, in which case the employee must waive his/her right to recall from lay off, in writing, as a condition of receiving severance pay.
- (b) The employee being unable to meet the conditions of employment due to physical or mental reasons, which result in a termination by the Employer. In such case, payment of severance pay must be into an R.R.S.P., subject to applicable laws, or R.R.I.F. established by the employee. It is understood that if the contributions cannot be made into an R.R.S.P. due to contribution caps being exceeded, the remainder of the severance pay is not forfeited but rather is paid out.

ARTICLE 14 – HOURS OF WORK AND OVERTIME

14.01 The following provisions are intended to define the normal hours of work and shall not be construed as a guarantee of hours of work per day or per week, or of days of work per week.

- 14.02 (a) The normal hours of work for full-time paramedics will be ten (10) or twelve (12) hours per day or forty (40) hours or forty-two (42) hours per week as averaged over the two (2) week scheduling period. Notwithstanding, it is understood that the normal hours of work are established at the discretion of the Employer subject to the obligation of the Employer to consult with the Union in the event of any change in the normal hours.
- (b) The Employer shall endeavour to provide at least two (2) consecutive days off per week as scheduled days off and shall provide eight (8) hours off between shifts.
- (c) The overtime rate for the purposes of this Agreement shall be one and one-half (1½) times the employee's regular hourly rate.
- (d) Overtime earned during a pay period will be paid on the regularly scheduled pay date following such pay period or banked at the employee's option.
- (e) Full time employees who wish to not be contacted for overtime opportunities shall indicate this to the employer in writing every six (6) months, by January 1 and July 1. Full time employees who do not indicate this shall be contacted for overtime opportunities.

14.03 Where an employee works in excess of his/her normal weekly hours, he/she shall be paid for each hour worked in excess of the normal weekly hours after averaging under Article 14.02 is applied, an amount of one and one-half (1½) times his/her regular hourly rate.

Employees who work past the end of their shift to complete a call will not be dispatched to any additional non-emergency (Code 1 and Code 2) calls once the original assignment is complete. Employees who are dispatched to Code 3 or Code 4 calls will be obliged to respond and render aid until relieved by the first appropriate transport unit. Should another ambulance not be available to transport the patient, the existing crew will be required to complete the call prior to returning to the station.

14.04 Days off shall normally be consecutive and the shift shall be planned in such a way as to equally distribute free weekends. The employee's daily shift shall not be split in the sense that the scheduled shift hours are not consecutive to one another. A part-time employee on the working schedule shall not work regularly more than twenty-four (24) hours in any work week, and shall be subject to the terms and conditions of employment set out in the attached Letter of Understanding. It is understood that students and part-timers may perform work for more than twenty-four (24) hours in a week during the vacation period from May 1 of any year to September 30 of the same year for vacation relief or other relief purposes or in any other period in order to accommodate vacation requests or other time off requests of the employees.

- 14.05 The non-operational duties shall be divided as equally as possible among employees on any shift; each employee shall be responsible for the cleanliness of the Ambulance Service's vehicles and stations.
- 14.06 The normal hours of work and days of work of each employee shall be posted no later than 1700 hours of the first business day of the preceding month.
- 14.07 (a) An employee who has completed his/her shift and leaves the station and then is recalled by Management to work outside his/her normal shift shall receive a minimum of two (2) hours pay at time and one-half (1½);
- (b) When an employee reports for work at the commencement of his/her scheduled shift and upon his/her arrival, finds no work available for him/her, he/she shall be paid for four (4) hours at his/her regular hourly rate. When an employee completes four (4) hours of work on his/her scheduled shift, and thereafter finds no work available for the remainder of such shift, he/she shall be paid for his/her full shift at his/her regular hourly rate of pay. The provision of this section shall not apply if the failure of the Employer to provide work is due to fire, flood or other interference with Employer operations beyond the reasonable control of the Employer.
- (c) The employee must notify the Employer, or where no Management is available, the base, in the event that he/she is not able to report for work at his/her scheduled starting time.
- 14.08 Banks for training, statutory holidays and overtime may be taken at times mutually agreed upon and not unreasonably withheld. The banked time must be taken or paid out by the final pay date of the year; banked time under the Collective Agreement pertaining to Christmas Eve, Christmas, Boxing Day and New Year's Eve shall be carried over to the following year.

Clarity Note: *Should there be prescheduled time off which has been mutually agreed for the time between "zeroing out" of the employee's annual banked time and year end, this time off will be honoured and not paid out unless extenuating circumstances, specifically captured under the Employment Standards Act Emergency Leave provisions. In this instance, the time out will be paid out in the following pay period.*

14.09 **Open Shifts**

Where an open shift exists in the Bargaining Unit, notwithstanding replacements under Article 22.01 and subject to the requirement of non-Bargaining Unit employees maintaining their certification and qualifications, the following procedure shall be followed:

- (a) The hours shall first be offered by seniority to part-time employees that have indicated their availability, until either the opening is filled, or all part-time staff have been scheduled for twenty-four (24) hours per week.
- (b) If after Step (a) there are hours still to be filled they shall be re-offered to available part-time employees as in Step a) until all available part-time staff have been scheduled for forty-two (42) hours per week.
- (c) If after Step (b) there are hours still to fill, they shall be offered on a one (1) shift per pay period basis to available qualified full-time employees by seniority. If there is no one to fill the open shift then it is to be offered again to full-time by seniority.
- (d)
 - (i) Employees will provide their availability to Management by 0900h on the:
 - **15th of November for the period of January 1st to April 30th**
 - **15th of March for the period of May 1st to August 31st**
 - **15th of July for the period of Sept 1st to Dec 31st**
 - (ii) Part-time employees will provide summer availability for the months of June, July and August by April 1st. The schedule will be posted by May 1st.

 Notwithstanding article 14.06 the schedule for the period of May 1st to May 31st will be posted no later than April 1st and the period of June 1st to August 31st will be posted no later than April 15th.
- (e) For the purposes of this Article, the following shall apply:
 - (i) For call in where a number of shifts are available all will be offered, not just the first shift available;
 - (ii) If an employee has not had a minimum of eight (8) hours off between shifts, no offer will be made except in the case of an emergency.
- (f) It is the responsibility of each employee to provide their availability and indicate whether they have not had a minimum of eight (8) hours off between shifts in accordance with (e) (ii) above.

Clarity Note: *The most senior part-time will be offered twenty-four (24) hours and the next senior part-time will offered the next twenty-four (24) hours and so on (based on availability).*

- 14.10 (a) Any shift greater than fourteen (14) days in advance that the employee has marked themselves available for, and that they are entitled to, will be filled by e-notification on e-schedule. When the employer changes a shift the employee will be contacted personally and advised of the change. Leaving a message on the employee's answering machine will not be proof that the employee has received the message.
- (b) Any open shifts less than fourteen (14) days, offer of shift will be by phone. All open shifts will be filled in accordance with Article 14.09.

14.11 **Paid Special Events Assignments**

- (a) A "Special Event" is defined as any contracted emergency medical service (EMS) between the County and an outside agency where the County receives remuneration to provide additional EMS coverage and/or an additional ambulance provided by the County for a specified period of time.
- (b) Each shift and every event is to be treated as a separate shift.
- (c) A Special Event call out list shall be maintained by the County. It is understood that the Special Event call out list is separate and apart from the regular call out list.
- (d) Call out for Special Event assignments shall be on the basis of the following order by seniority; full time on a rotational basis appropriate to the level of qualification requested by the contracting agency, if no full time accept or are available the shift(s) will be offered to part-time employees on a seniority basis. If a Full-time employee accepts the shift then their scheduled shift will be filled as per Article 14.09.
- (e) The Employer will call each employee on the Special Event call out list regardless of the employee's scheduled workplace attendance for the date and time of the Special Event shift, until such time as an employee accepts the shift, at which time the shift will be deemed to have been filled.
- (f) Employees accepting a Special Event shift will be primarily assigned to the Special Event for which they were contacted. In exceptional circumstances, as determined by the EMS supervisor the employee may be re-assigned to regular street service, however, all reasonable efforts within the control of the Employer will be made to maintain the Special Event assignment. To aid in minimizing any changes of re-assignment the Supervisor will call CACC to place the assigned unit on a Code 0 for travel to the event, and upon the completion of the shift the Supervisor will notify CACC to place the assigned unit on a Code 0 to return to the station.

ARTICLE 15 – SHIFT PREMIUM

- 15.01 The Employer will pay a shift premium of one dollar (\$1.00) per hour for all hours worked between 5:00 p.m. and 7:00 a.m. Where more than fifty percent (50%) of the hours worked fall within this period, the one dollar (\$1.00) per hour premium shall be paid for all hours worked.
- 15.02 Shift premiums shall not be considered as part of an employee's basic hourly rate.
- 15.03 Shift premiums shall not be paid to an employee who, for mutually agreed upon reasons, works a shift for which he/she would otherwise be entitled to a shift premium.

ARTICLE 16 – DESIGNATED HOLIDAYS

- 16.01 The following are recognized as designated holidays:

New Year's Eve (½ day)	Civic Holiday
New Year's Day	Labour Day
Family Day	Thanksgiving Day
Good Friday	Christmas Eve (½ day)
Easter Monday	Christmas Day
Victoria Day	Boxing Day
Canada Day	Floating Holiday
National Day for Truth & Reconciliation	

And any holiday proclaimed by the Federal, Provincial governments or the County of Brant.

Holiday pay shall be based on either an eight (8) hour shift for a forty (40) hour shift schedule or an eight point four (8.4) hour shift for a forty-two (42) hour shift schedule.

The floating holiday with pay shall be taken at a mutually agreeable time during the calendar year.

Effective April 1, 2004, for the purpose of this Article, Christmas Eve (½ day) and New Year's Eve (½ day) shall be deemed to be from 12:00 hours until 24:00 hours on either day and employees who work on these days shall be paid the premium rate for all hours worked during the designated period.

- 16.02 (a) Where an employee is required to work on any of the above designated holidays, he/she shall be paid at the rate of double his/her regular rate of pay for all hours so worked.

- (b) In addition to the payment provided to an employee who works on the holiday, an employee who is entitled to receive statutory holiday pay shall receive either eight (8) hours or eight point four (8.4) hours statutory holiday pay at the employee's basic hourly rate or the equivalent compensating leave of either eight (8) hours or eight point four (8.4) hours, provided the employee opts for compensating leave prior to the holiday, subject to Article 16.04.
- (c) An employee who does not work on a designated holiday but is entitled to holiday pay shall have the option to select the equivalent compensating leave of eight (8) hours or eight point four (8.4) hours in lieu of holiday pay subject to Article 16.04.

16.03 In order to be entitled for payment for a designated holiday, an employee must have worked fully the last scheduled working day immediately preceding the holiday and the first scheduled working day immediately following the holiday unless absent from work through proven illness in which case such employee shall not be disqualified from receiving holiday pay provided he has worked one (1) or more of the working days since the last designated holiday and returns to work prior to the next designated holiday. Where an employee is absent through proven illness on the relevant qualifying days for Good Friday, Easter Monday, Christmas Eve, Christmas Day, Boxing Day, New Year's Eve and New Year's Day, he shall not be disqualified from receiving holiday pay.

16.04 An employee shall have the option of banking holiday pay to which he is entitled under Article 16.02 (b) and Article 16.02 (c) subject to Article 14.08.

- (a) The time off must be taken on a date, which is agreeable to both Employer and employee.

16.05 Full-time employee who wish to shift change into an open designated holiday shift will send their request to their immediate Supervisor six (6) weeks prior to the designated holiday.

Requests to shift change into the open designated holiday shift will be approved on a seniority and rotational basis.

The Employer will offer fifty percent (50%) of the open designated holiday shifts for each designated holiday to Full-time employees. The remaining open designated holiday shifts will be offered as per Article 14.09 (Open Shifts).

If only one (1) open designated holiday shift is available it will be filled as per Article 14.09 (Open Shifts).

ARTICLE 17 – VACATION WITH PAY

17.01 Full-Time Employees

- (a) Effective April 1, 2006, the Employer agrees to award vacation on the daily basis of eight (8) hours for those employees who work a forty (40) hour work week and eight point four (8.4) hours for those employees who work a forty-two (42) hour work week. Vacation credits shall be accumulated by employees monthly from their date of employment, as a full-time paramedic, by the Employer and/or Brant/Brantford Paramedic Services. Except if there is a break in service, the pro-rated part-time service shall be reflected in determining eligibility for entitlement for vacation with pay for part-time employees becoming full-time. An employee may, at the discretion of his/her supervisor, take vacation at any time, but in no instance shall the amount deducted for vacation be less than one (1) hour. The following schedule shall be used to calculate vacations:

Effective April 1, 2021

Years of Service	Days Earned Per Month	Days Earned Per Year	Hours Earned Per Year
During Year 1	0.92	11	92.4
During Year 2	1	12	100.8
During Year 3	1.08	13	109.2
During Year 4	1.17	14	117.6
During Year 5	1.25	15	126
During Year 6	1.33	16	134.4
During Year 7	1.42	17	142.8
During Year 8	1.5	18	151.2
During Year 9	1.58	19	159.6
During Year 10	1.67	20	168
During Year 11	1.75	21	176.4
During Year 12	1.83	22	184.8
During Year 13	1.92	23	193.2
During Year 14	2	24	201.6

Years of Service	Days Earned Per Month	Days Earned Per Year	Hours Earned Per Year
During Year(s) 15-19	2.08	25	210
During Year 20	2.33	28	235.2
During Year 21	2.44	29	243.6
During Year 22	2.5	30	252
During Year 23	2.58	31	260.4
During Year 24	2.66	32	268.8
During Year 25+	2.69	35	294

- (b) It is understood that the vacation entitlement shall not be accumulative and must be taken within the calendar year. In accordance with the Employer's Vacation Policy an employee will be allowed to carry a maximum of ten (10) days of their annual vacation entitlement to the subsequent year.
- (c) The Employer encourages employees to take their annual vacation entitlement to maintain good health, morale and efficiency in their daily duties.
- (d) ERC will, as necessary, discuss a process for scheduling summer vacations for full-time employees so that as many as reasonably possible have sufficient notice to plan vacations during the summer.

17.02 Vacation with pay for each week of vacation shall be at the regular rate of pay effective immediately prior to the vacation period.

17.03 Employees are to indicate their vacation preference by November 1st in each year. If an employee does not indicate his/her vacation preference by November 1st in each year, vacation will be granted on a first come first serve basis. Vacations will then be approved on the basis of seniority. Final vacation schedules will be posted by 1700 hours of the first office weekday of December of each year at the latest, to begin January 1st unless otherwise agreed. Once posted, changes may be made only with a minimum of fourteen (14) calendar days, and written notice to the supervisor, where both the supervisor and employee agree in writing. Where an employee has excessive vacation un-booked, the Employer will meet with them to mutually agree on scheduling. Where an employee cancels vacation, the displaced part time staff shall be given the next mutually agreed to open shift.

17.04 If a statutory holiday falls within a vacation period, it is agreed that the Employer will pay to the employee an extra day of pay at either eight (8) hours or eight point

four (8.4) hours times the employee's regular straight time hourly rate in lieu of any further vacation time off.

- 17.05 At least seven (7) employees may be allowed to take their vacation at the same time provided in the opinion of Management this does not unduly affect the schedule of operations. Such requests shall not be unreasonably denied.

Clarity Note: *The Employer can approve more than seven (7) employees to be off at a time, the seven (7) employees is not a maximum number of employees that may be off at one (1) time.*

- 17.06 Part-time employees may be required to work one of Christmas or New Year's.

- 17.07 No one will lose vacation entitlement because of operational requirements.

ARTICLE 18 – EMPLOYEE BENEFITS

- 18.01 The Employer agrees to pay an insurance carrier the premium costs of the Insurance Plan in effect as of the date of this Agreement for the following benefit on behalf of employees who have completed three (3) months of continuous service with the Employer:

- (a) Semi-Private Hospital Coverage;
- (b) Extended Health Care: Vision care is four hundred dollars (\$400) every two (2) years including eye examination, audio care is five hundred dollars (\$500) every three (3) years and extended health care benefits for the chiropractic and massage is a combined Registered Practitioner maximum of seven hundred dollars (\$700).
- (c) Life Insurance Plan: Including A.D.&D. in the amount of two (2) times salary;
- (d) Dental Plan: Basic Coverage is one thousand five hundred dollars (\$1,500) per benefit year.

Orthodontic coverage at fifty percent (50%) reimbursement to a lifetime maximum of one thousand five hundred dollars (\$1,500).
- (e) Long Term Disability Plan.
- (f) Physiotherapy benefits are to a maximum of three thousand dollars (\$3,000) per year, effective January 1, 2022.

Most details of any plans and requirements of the carriers are detailed in the employee's information booklet.

18.02 The carrier of any insurance or other benefits will be the Employer's choice. Should the carrier be changed during the term of this Agreement, the coverage shall be at least equivalent to that presently being provided to the employees. Any changes in the carrier shall be communicated to the Union prior to implementation.

18.03 The Employer's premium cost will continue as long as the employee is on the active payroll.

Employees who are absent due to illness, accident or injury shall continue to receive full benefits for a period of two (2) years from the commencement of the absence.

18.04 In addition to the Canada Pension Plan, every full-time employee shall join the Ontario Municipal Employee's Retirement System Plan (OMERS). The Employer and the employee shall make contributions in accordance with the provisions of the OMERS Plan.

18.05 (a) Early Retiree Benefits

Employees who retire on the OMERS Pension Plan will maintain benefits until the age of sixty-five (65) under the insurance carrier in effect as of the date of this Agreement excluding semi-private coverage, out of province insurance, dental coverage, L.T.D. and Life Insurance. Any changes to the Plan shall be applied to the retirees without notice.

However, Employees may pay one hundred percent (100%) of the premium cost for out of province insurance and dental coverage. If an employee opts out of out of province and dental insurance coverage at the time of offer by the employer, he/she cannot enroll for coverage at a later date.

Most details of any plans and requirements of the carriers are detailed in the employee's information booklet.

(b) Retiree Benefits (Age 65 - 75)

Full-time employees who retire on the OMERS Pension Plan at age 65 and early retirees with benefit coverage who reach age 65 may choose to continue with the following benefit plans; prescription drugs, vision care, hearing aids and dental. Employees will be responsible for one hundred percent (100%) payment of the premiums, these benefits will continue until the end of the month in which the employee turns seventy-five (75) years of age. If a retiree opts out of the extended health and dental insurance

coverage at the time of offer by the Employer, he/she cannot enroll for coverage at a later date.

Most details of any plans and requirements of the carriers are detailed in the employee's information booklet.

18.06 Regulations relating to eligible and credited service will be determined in accordance with the OMERS Pension Plan.

18.07 E.I. Premium rebate will be used to provide for the Long Term Disability and Life Insurance as provided in this contract.

18.08 The Employer shall pay full premium costs of liability insurance for the Ambulance Service.

18.09 Critical Incident Stress

The parties recognize that paramedics are subject at times to extreme stress in the performance of their duties; therefore, where an employee is experiencing obvious stress as a result of a critical injury case they may be relieved of duties for the remainder of the shift without loss of pay.

A critical incident occurs when an employee experiences an unusually strong emotional reaction to an extraordinary situation that interferes with their ability to function in the workplace.

The parties agree, that in the event of a critical incident in the workplace, the Employer will provide critical incident stress debriefing to the affected employee(s) through the Municipality's EAP provider. Such employee(s) shall be approached by a supervisor to discuss the incident and the supervisor shall offer the employee time off work so that they can immediately access EAP.

The Employer shall not unreasonably deny requests arising out of the workplace issues for additional EAP/Counselling sessions by any member of this bargaining unit.

18.10 During the period of Long Term Disability seniority/service credits and health benefits will continue at the levels in effect at the time of disability subject to proper and acceptable medical certification for absence.

ARTICLE 19 – UNIFORMS AND MEAL ALLOWANCE

19.01 An employee required to travel on behalf of the Employer, so that he/she is not at his/her assigned place of duty throughout his/her normal meal period, will receive reimbursement for one (1) meal. Meal allowance shall be up to thirteen dollars

(\$13.00) effective on ratification. Such traveling must result in absence from place of duty for one hundred percent (100%) of the meal period. *If the employee is present at his/her assigned place of duty for a portion of the meal period he will be entitled to the normal meal break.*

The meal period is defined as the period from the fourth (4th) hour to the sixth (6th) hour after commencement of the employee's shift and in addition, for twelve (12) hour shifts, the period between the ninth (9th) hour and the eleventh (11th) hour.

Effective date of ratification the rate will increase to thirteen dollars (\$13.00).

19.02 Uniform Point System

- (a) The Employer agrees to initially provide one (1) black belt to each full-time paramedic and to provide six (6) shirts, four (4) pairs of trousers, one (1) pullover sweater/fleece, three (3) summer shirts with moisture-wicking properties, one (1) safety helmet with goggles, a high visibility safety vest, one (1) personal floatation device, one (1) pair of safety work gloves, one (1) personal equipment storage bag, six (6) epaulettes, one (1) winter hat, one (1) summer hat to such employees.
- (b) The Employer agrees to provide female cut uniforms at the employee's request in accordance with (a).
- (c) It shall be the responsibility of the employee to notify the Employer of damaged uniforms requiring repair or replacement to the extent that damage is done during working hours. The Employer shall repair or replace such uniforms as required and shall pay for the cost of dry cleaning all or part of an employee's uniform if it is soiled or stained while the employee is on a call.
- (d) Each employee will be required to replace their uniform items based on a point system. Points are awarded to the employee on January 1st of each year.

Full-time employees will be awarded 400 points per year.

Part-time employees will be awarded up to a maximum of 400 points per calendar year, prorated, based on the actual hours worked in the previous year. Less than 1039 hours are calculated per hour (5.2 hours = 1 point). 1040 – 1559 hours = 200 points. 1560 – 2079 hours = 300 points. 2080 hours – 400 points. Each 5.2 hours worked will equal 1 point awarded. Maximum points to be 400, minimum to be 100.

Employees may carry over points to be accumulated, or carry a deficit for one (1) year, towards a dress uniform. These carry over points are not to be used to obtain additional annual uniforms.

- (e) The Employer will produce a list of approved items that the employee will select the uniform items for. The Employer will also provide a list of items with points.

It is agreed that the list will include all items listed in 19.02 (a) as well as items determined by the Employee Relations Committee.

- (f) Regular replacement uniform orders will be placed by March 1st each year, however, emergency replacement orders will be accepted at any time based on the employee having sufficient points available.

The Employer may determine individual employee issue if the uniform is in poor condition and continues to be worn by the employee.

- (g) The following items are not considered part of the point system.

One (1) winter jacket will be replaced at the Employer's discretion.

Six (6) epaulettes, one (1) winter hat, one (1) summer hat,

All personal Health and Safety items including by not limited to, safety helmet, goggles, personal floatation vests, high visibility vests (safety vest) and work gloves will be replaced at the Employer's discretion.

- (h) A Primary Care Paramedic who becomes an Advanced Care Paramedic shall receive six (6) epaulettes and vice/versa at the time of transfer.

- (i) The employees shall wear the uniform as designed by the Employer during working hours and at no time, save and except when the employee is going to work from home, or directly home from work, or as approved by the Employer for special functions.

The Uniform shall be the property of the Employer and if an employee ceases employment for any reason, the current issued uniform shall be returned to the Employer.

19.03 Boots, as herein described, shall become a mandatory part of the uniform worn by all full-time paramedics. The boots shall be of the following description:

- (a) Black dress safety boots;
- (b) Steel toe;
- (c) Steel shank (optional);

- (d) Corrugated or traction sole and heels; and
- (e) Lace, zipper, or elastic (optional).

The Employer shall reimburse an employee up to three hundred dollars (\$300) every two (2) calendar years toward the cost of safety boots as previously described, subject to the employee submitting the original receipt. Effective January 1, 2023, the employer shall reimburse an employee up to three hundred and twenty-five (\$325) every two (2) calendar years toward the cost of safety boots as previously described, subject to the employee submitting the original receipt. This allowance is to be used for the purchase of one (1) or more pairs of approved footwear over the two (2) calendar year period starting January 1, 2004. Submission of a receipt(s) shall constitute proof that the boots have been purchased.

ARTICLE 20 – SHORT TERM DISABILITY PLAN

20.01 The Employer provides a Short Term Disability Plan for periods of up to seventeen (17) weeks.

20.02 Procedures

Eligibility

All permanent full-time employees covered by this Policy shall be eligible for coverage after three (3) months service with the Employer. Except if there is a break in service, the pro-rated part-time service shall be reflected in determining eligibility under the waiting period and for the purpose of determining the extent of leave available at one hundred percent (100%) of salary.

20.03 When absent due to sickness, an employee must notify the on-duty supervisor, at least two (2) hours prior to such employee's starting time. Failure to do so may entail a loss of sick leave pay.

Coverage

- (a) Coverage is in effect twenty-four (24) hours per day and provides income protection for any illness or injury which is not properly covered by the *Workplace Safety and Insurance Act*.
- (b) When an employee becomes eligible for coverage, coverage commences with the first day of illness based on the following benefit schedule:

<u>Length of Service</u>	<u>100% Salary</u>	<u>75% Salary</u>
3 months but less than 6 months	0 weeks	17 weeks
6 months but less than 1 year	1 week	16 weeks
1 year but less than 2 years	2 weeks	15 weeks
2 years but less than 3 years	3 weeks	14 weeks
3 years but less than 4 years	4 weeks	13 weeks
4 years but less than 5 years	5 weeks	12 weeks
5 years but less than 6 years	7 weeks	10 weeks
6 years but less than 7 years	9 weeks	8 weeks
7 years but less than 8 years	11 weeks	6 weeks
8 years but less than 9 years	13 weeks	4 weeks
Over 9 years	17 weeks	0 weeks

- (c) An employee covered by this benefit will always have up to seventeen (17) weeks of benefit coverage per illness/disability. Based on the number of years of service an employee may be eligible for coverage at one hundred percent (100%) of salary or seventy-five percent (75%) of salary in accordance with the above schedule. However, the schedule represents the maximum of one hundred percent (100%) benefit that an employee has available in a year. If during the year an employee uses the maximum eligible sick leave, which is covered at one hundred percent (100%) of salary, then all other eligible sick leave during the year is covered at seventy-five percent (75%) of salary.
- (d) If an employee is not at work on their anniversary date, the one hundred percent (100%) credit will not renew until the employee actually returns to work.
- (e) An employee may be required to produce a medical certificate from a duly qualified medical practitioner for absences from work where such employee has been absent for more than three (3) consecutive shifts. Where the Employer requires any medical certificate, the Employer shall reimburse the employee for the full cost.
- (f) If an employee returns to work for seven (7) working days or less and suffers a recurrence of the same or related disability, the disability will be considered a continuance of the initial or previous disability. If the employee returns to work for more than seven (7) working days and becomes disabled again due to the same or related cause, the disability will be treated as a new disability and, as in the case of any new or unrelated disability, the employee will be eligible for a full seventeen (17) weeks of coverage.

It is understood that the Short-term Disability (STD) Plan and Long-term Disability (LTD) Plan are integrated and that employees will make application for LTD benefits as per the LTD plan guidelines.

- (g) If during a fully paid leave of absence, an employee becomes ill, the employee should advise the Employer of the illness. Appropriate certification, if required, will be requested. An employee on any leave of absence that is not a fully paid leave will not be eligible for payment of short-term benefits in the event of illness. Eligibility for short-term benefits will be reinstated once the employee returns to work, as authorized.
- (h) If an employee is sick/disabled, other forms of leave cannot be substituted for the employee's sick leave entitlement. Where an employee is sick or hospitalized while on vacation and qualifies for sick leave during such time, a doctor's note shall be provided by the employee to the Corporation certifying the absence on the relevant date(s).
- (i) If during the short term disability leave an employee is laid off or terminated other than for retirement, the employee will continue on short term disability leave until the earliest of:
 - (i) The expiry of his/her short term disability coverage (seventeen (17) weeks per incident); or
 - (ii) The end of the illness.

If notice of lay off or termination is given prior to the commencement of the short term disability leave and the short term disability leave starts within two (2) calendar months of the layoff/termination date, the leave stops on the layoff/termination date.
- (j) Effective January 1, 2002, full-time employees may apply for supplemental sick leave benefits while on pregnancy and /or parental leave in accordance with the County of Brant's Policy dated January 1, 2002.

Benefit and Service Continuation

During the period of short term disability, life and health benefits continue at the levels in effect at the time of disability subject to proper and acceptable medical certification for absence. If employment is terminated during the short term disability leave, life and health benefits cease on the termination date.

20.04 The Employer agrees to provide E.A.P. program in accordance with the current practice.

20.05 Time lost by a paramedic as a result of being quarantined by a certified medical practitioner, under the authority of the Medical Officer of Health, because of a job related or other exposure shall be treated as a leave of absence with pay for the

duration of the quarantine, provided there is documented proof of the quarantine and the quarantine period.

ARTICLE 21 – PREGNANCY AND PARENTAL LEAVE

21.01 Pregnancy Leave

Pregnancy and parental Leave will be granted in accordance with the *Employment Standards Act*.

In respect of the period of pregnancy leave, payments will consist of the following;

- (a) For the one (1) week Employment Insurance waiting period, payments equivalent to ninety three percent (93%) of the actual weekly rate of pay for her classification, which she was receiving on the last day worked prior to commencement of pregnancy leave; and
- (b) Up to a maximum of sixteen (16) additional weeks, payments equivalent to the difference between the sum of the weekly Employment Insurance benefits the employee is eligible to receive and any other earnings received by the employee, and seventy-five percent (75%) of the actual weekly rate of pay for her classification, which she was receiving on the last day worked prior to the commencement of the pregnancy leave. Employees shall furnish the Region with proof of the Employment Insurance payments.

21.02 Parental Leave

In respect of the period of parental leave, payments will consist of the following;

- (a) For the one (1) week Employment Insurance waiting period, payments equivalent to ninety three percent (93%) of the actual weekly rate of pay for his/her classification, which he/she was receiving on the last day worked prior to commencement of parental leave; and
- (c) Up to a maximum of eleven (11) additional weeks, payments equivalent to the difference between the sum of the weekly Employment Insurance benefits the employee is eligible to receive and any other earnings received by the employee, and seventy-five percent (75%) of the actual weekly rate of pay for his/her classification, which he/she was receiving on the last day worked prior to the commencement of the parental leave.

- 21.03 Notwithstanding the foregoing, the top up entitlements for an employee who elects to receive a lower employment insurance benefit spread over a longer period of time as may be permitted by the *Employment Insurance*

Act (Canada) will not cumulatively exceed the Employer's obligation without such election.

ARTICLE 22 – LEAVE OF ABSENCE

22.01 Personal Leave

The Employer may grant leave of absence without pay to an employee for personal reasons for up to one (1) year, and any person who is absent with such written permission shall continue to accumulate his/her seniority for twelve (12) months. Benefits shall be maintained for three (3) months and longer if the employee pays the full premiums each month in advance.

It is agreed that the Employer may replace a full-time employee on a leave of absence with a part-time employee who may regularly work up to forty (40) or forty-two (42) hours a week and maintain his/her status as a part-time employee for all purposes under the Collective Agreement. Replacement opportunity for part-time employees will be on the basis of seniority.

22.02 Bereavement Leave

When the death of an employee's spouse, child or parent occurs of an employee who has acquired seniority, he/she shall be granted not more than five (5) shifts leave of absence with pay. Such leave of absence shall be for time necessarily lost from work. Immediate family is defined as mother, father, son and daughter including an adopted child, spouse including common-law spouse as defined in the *Family Law Act*, and also includes guardians and wards of the employee.

When a death occurs in the immediate family of an employee who has acquired seniority, he/she shall be granted not more than four (4) shifts leave of absence with pay. Such leave of absence shall be for time necessarily lost from work. Immediate family is defined as brother and sister.

When a death occurs in the immediate family of an employee who has acquired seniority, he/she shall be granted not more than three (3) shifts leave of absence with pay. Such leave of absence shall be for time necessarily lost from work. Immediate family is defined as father-in-law, mother-in-law, grandparents, grandchildren

In the event of the death of an employee's sister-in-law, brother-in-law, son-in-law, daughter-in-law, aunt and uncle, niece and nephew, the employee shall be granted one (1) shift leave of absence with pay.

Immediate family under this Article shall be deemed to include same sex or step relationships.

Employees will be permitted to take time off without pay to attend the funeral of a member of this Bargaining Unit, provided the needs of the service are not affected.

An employee may request a reasonable amount of time off without pay in connection with a paid bereavement under this provision. The Employer will not unreasonably deny such leave.

Paid Bereavement leave is applicable to part time employees to the extent that such leave is required during a one (1), three (3), or five (5) day period which coincides with the date of the family member's death or service, on days which part time employees are scheduled to work.

22.03 Special and Compassionate Leave

- (a) The Director or his/her designee may grant an employee leave of absence with pay for not more than two (2) shifts in a calendar year upon special or compassionate grounds.
- (b) The granting of leave under this Article shall not be dependent upon or charged against short term disability and such requests shall not be unreasonably denied.

22.04 Jury Duty

Each employee who is summoned and reports for jury duty during his/her regular working hours shall be paid by the Employer the difference between the employee's regular straight time hourly rate, and the daily jury duty fee paid by the Court. In order to be entitled to such pay from the Employer, an employee must give notice of selection for jury duty.

22.05 Witness Duty

- (a) Each employee who is required to appear in court during his/her regular working hours or during his/her scheduled time off as a result of a service-related incident which occurred during the course of his/her work, shall receive his/her regular hourly rate of pay for each hour in court, with a minimum of four (4) hours pay at the employee's regular straight time hourly rate.
- (b) An employee will not be required to work eight (8) hours preceding or the first eight (8) hours following a court appearance as referred to in Article 22.05 (a). The employee will provide written documentation from the court verifying arrival and departure times in court.

22.06 Shift Change

Management will allow a shift change between any employees on reasonable notice, subject at all times to the exigencies of the Service as determined by Management and provided the shift change does not trigger the payment of overtime under this Agreement. The actual arrangements for any shift change are the responsibility of the employees involved and should the employee who is a replacement not report for work on the affected shift, then the employee who has not reported for work in order to replace the regularly scheduled employee will be responsible for replacement costs, which costs shall be deducted from his/her next pay. Replacement costs are defined as the part-time rate of pay where a part-time employee is used as a substitute for the employee who has not reported to work. In the event that a full-time employee is used as a substitute, the replacement costs are the additional half-time overtime costs.

Where there is a duty to accommodate under the *Human Rights Code*, we will agree to accommodate the shift needs of an employee.

22.07 Union Leave

- (a) Upon request by the Union, confirmed in writing and provided that seven (7) days written notice is given, leave of absence with no loss of pay and with no loss of credits shall be granted to employees elected as Executive Board Members and Executive Officers of the Union, for the purpose of conducting the internal business affairs of the Union.
- (b) The Union will reimburse the Employer for the wages paid to members of the Executive Board or Executive Officers or the replacement costs if such costs are greater than the wages paid where a leave of absence is granted under this Article.
- (c) When an employee is elected as the Union's President or First Vice-President, the Union will, immediately following such election, advise the Employer of the name of the employee so elected. Leave of absence with pay shall be granted from the employee's place of employment for the duration of the current term of office and seniority shall continue to accrue indefinitely while on Union Leave.
- (d) On completion of the employee's term of office, the President or First Vice-President may return to their previous employment and service shall be deemed to be continuous for all purposes. Any leave of absence extending beyond the initial term of office of the President or First Vice-President/Treasurer shall be a matter to be determined between the parties and such additional leave shall be subject to the same conditions and terms as prevailed in the initial leave of absence.

- (e) During the term of such leave of absence, the Union will reimburse the Employer for the salary paid to the employee on such leave of absence and contribute the Employer's share of contributions to OMERS and the Canada Pension Plan. The Union will make the Employer's contribution to any prevailing health or other plans applicable to the elected employee and pay the costs of any attendance credits accumulated during the leave of absence. The Union will make the Employer's contribution for Employment Insurance.
- (f) Up to one (1) employee from any one (1) shift and up to two (2) employees at any one time may be granted leave of absence without pay to attend Union meetings, provided that at least seven (7) days notice is given by the Union to a Manager or his/her designate prior to the absence.

22.08 Notice

The employee shall discuss any required leave with his/her Employer at the earliest opportunity.

- 22.09 All requests for leave of absence permitted in these sections shall be sent to the Employer. It is understood that leaves requested by the Union may be withheld if such leave interferes with the operational requirements of the Employer. In the event of a leave of absence under this Article, the Employer may hire a temporary employee, who will not be placed on any benefit plans for the duration of the leave. It is understood that the temporary position will first be offered to qualified part-time employees prior to posting externally.

ARTICLE 23 – HEALTH AND SAFETY

- 23.01 The Employer shall continue to make reasonable provisions for the safety and health of its employees during the hours of their employment. It is agreed that both the Employer and the Union shall cooperate to the fullest extent possible in the prevention of accidents and in the reasonable promotion of safety and health of all employees.
- 23.02 The Employer shall provide safety equipment and protective clothing where it requires, to be worn by its employees.
- 23.03 The obligation contained herein does not apply to the provision of safety shoes or boots or the provision of clothing. The provision of these items shall be in accordance with Article 19 and Letter of Understanding No. 1, paragraph 3, of the Collective Agreement.
- 23.04 One (1) "Worker Representative" of the Health and Safety Committee shall receive Certification Training on an annual basis, where needed.

ARTICLE 24 – TRAINING/ADVANCE CARE PARAMEDIC TRAINING

24.01 Where an employee is provided Emergency Health Service Mandatory training, mandatory annual base hospital certification (SAED and Symptom Relief) and other mandatory training outside of his/her normal hours of work, such training shall not constitute hours of work for the purpose of overtime under the Collective Agreement. The employee will have the option of receiving his/her regular straight time rate of pay for each hour of such training or banking these training hours for use as time off at a time mutually agreed by the employee and the Director or his/her designate.

This provision shall not apply to any time spent by an employee in obtaining the following:

- (a) Emergency Medical Care Assistant certification;
- (b) Certification and/or recertification in any authorized delegated medical controlled act(s) not preauthorized by the Employer;
- (c) CPR certification and/or recertification not provided by the Employer on work time;
- (d) First Aid certification and/or recertification;
- (e) Driver's Licence;
- (f) Any training as a result of deactivation or de-certification by the base hospital.

Any time spent in obtaining the above shall not constitute work for the purpose of the Collective Agreement.

24.02 The Employer will provide Advanced Care Paramedic training to Paramedic I's to the extent possible. This shall not restrict the Employer from hiring external Paramedic II's.

- (a) (i) In the event that an employee is the successful applicant for participation in Advanced Care Paramedic training, such employee will be required to take a leave of absence from the Employer for the duration of his/her full training program. For each week during this leave of absence, the Employer will continue to pay to the employee his/her basic straight time hourly rate for the normal weekly hours of work assigned to such employee in addition to paying for training. Service and seniority will continue to accumulate for the duration of the training.

- (ii) It is understood that the Collective Agreement continues to apply. Notwithstanding, it is further understood that any actions of the base hospital certifying agencies, or their representatives, do not come under the jurisdiction of the Collective Agreement and therefore, cannot constitute a difference or dispute or grievable action under the Collective Agreement. This understanding does not limit an employee's right to grieve actions of the Employer including disciplinary action up to and including dismissal from employment that may occur during the period of the leave of absence.
 - (iii) Should the employee successfully achieve certification, he/she will be placed on the Paramedic II (Land Ambulance) grid at the step commensurate with his/her years of service. i.e. Step 2 to Step 2
 - (iv) During the consolidation period, it is understood that an employee will be paid the ACP rate only when at work when paired with another practicing ACP employee, upon the Base Hospital confirming in writing or e-mail to the employer that the employee is able to practice at the ACP level.
- (b) Where Paramedic II training is provided by a combination of Paramedic I class work and ongoing clinical work the following shall apply:
 - (i) Employees shall continue to be scheduled for forty (40) or forty-two (42) hours per week as applicable;
 - (ii) Clinical time will be either encompassed in the scheduled shifts or paid at the straight time hourly rate;
 - (iii) Class time outside of the scheduled shifts will be on the employee's own time;
 - (iv) The Employer shall pay program costs associated with the Paramedic II training, i.e. tuition.

24.03 All employees will be required to maintain certification in all delegated medical acts, including CPR, which are required by the Employer. The Employer shall bear all costs associated with this requirement as per our current practice in effect April 1st, 2002. CPR training will be provided at CME sessions.

24.04 An employee who voluntarily leaves the training program, or is involuntarily removed from the program, will be returned to their former position, and will be returned to their former base and shift where possible.

Such an employee may be provided with the opportunity of participating in the Advanced Care Paramedic training at a future date.

24.05 The Employer will endeavour to schedule in-house training sessions during regular working hours. In the event that this is not feasible and such training occurs outside regular hours, the employee will have the option of receiving his/her regular straight time rate of pay for each hour of such training and/or the banking of such hours to be used at a time mutually agreeable by the employee and the Employer, but in any event, before the end of the calendar year, (i.e. January 1st to December 31st), in which the hours were banked. If not taken, any such hours will be paid out.

24.06 Prior to embarking on an Advance Care training program the Employer will consult with the Union to discuss a protocol for the ACP training.

24.07 The Employer shall not schedule training the last three (3) weeks in December.

ARTICLE 25 – PRINTING OF AGREEMENT

25.01 The parties agree to share equally the cost of printing the Collective Agreement for execution by the parties. The Collective Agreement will normally be printed and distributed to employees within ninety (90) days following ratification or the release of any arbitration award, whichever is applicable.

25.02 Where the masculine gender is used in this Agreement it shall be deemed to include the feminine gender.

ARTICLE 26 – CORRESPONDENCE

26.01 All written communications relating to matters arising out of this Agreement will be addressed as follows:

To the Employer: County of Brant
26 Park Avenue
P.O. Box 160
Burford, Ontario N0E 1A0
Attn: Chief Administrative Officer

Telephone: 519-449-2451
Facsimile: 519-449-2454

To the Union: Ontario Public Service Employees Union
Hamilton OPSEU Office
505 York Blvd – 2nd Floor
Hamilton, Ontario L8R 3K4
Telephone: 1-800-268-7376
Facsimile: 905-525-2377

ARTICLE 27 – CHECKOFF OF UNION DUES

27.01 The Employer shall deduct from the regular pay of each employee in the Bargaining Unit, starting with the pay period nearest to the employee's date of hire, an amount equivalent to such union dues as may be designated by the Union from time to time. The Employer agrees to remit this amount to OPSEU, Accounting Department, 100 Lesmill Road, North York, Ontario, M3B 3P8, not later than the 15th day of each month following deduction, accompanied by a list of names, and with the first dues deduction, the S.I.N. numbers of the employees from whose pay the dues have been deducted.

The Employer agrees that, should negotiations result in retroactive payment of salary increases, the Employer will deduct the amount of dues required by the Article at the time the payment is made. Retroactive payments do not apply to the first Collective Agreement.

27.02 The Employer agrees to include on the T4 slips of each employee affected by this Article the annual total of dues deducted.

27.03 The Union will advise the Employer in writing of the amount of its regular dues. The amount so advised will continue to be deducted until changed by further written notice to the Employer.

27.04 The Union will indemnify and save the Employer harmless against any and all claims, demands, suits and other forms of liability that may arise out of any action taken or not taken by the Employer for the purposes of complying with any of the provisions of this Article.

ARTICLE 28 – WAGES

Retroactive to April 1, 2016, includes all current and former employees

28.01 CLASSIFICATIONS AND WAGES – April 1, 2020 (2%)

Classification Full-Time	0 – 12 Months	After 12 Months	After 24 Months
Full-Time Paramedic I	\$37.32	\$38.52	\$39.90
Full-Time Paramedic II	\$42.01	\$43.35	\$44.71

CLASSIFICATIONS AND WAGES – April 1, 2020 (2%)

Classification Part-Time	0 – 2,080 Hours	2,080 – 4,160 Hours	After 4,160 Hours
Part-Time Paramedic I	\$37.32	\$38.52	\$39.90
Part-Time Paramedic II	\$42.01	\$43.35	\$44.71

CLASSIFICATIONS AND WAGES – April 1, 2021 (2%)

Classification Full-Time	0 – 12 Months	After 12 Months	After 24 Months
Full-Time Paramedic I	\$38.07	\$39.29	\$40.70
Full-Time Paramedic II	\$42.85	\$44.22	\$45.60
Classification Part-Time	0 – 2,080 Hours	2,080 – 4,160 Hours	After 4,160 Hours
Part-Time Paramedic I	\$38.07	\$39.29	\$40.70
Part-Time Paramedic II	\$42.85	\$44.22	\$45.60

CLASSIFICATIONS AND WAGES – April 1, 2022 (2%)

Classification Full-Time	0 – 12 Months	After 12 Months	After 24 Months
Full-Time Paramedic I	\$38.83	\$40.07	\$41.51
Full-Time Paramedic II	\$43.71	\$45.10	\$46.51
Classification Part-Time	0 – 2,080 Hours	2,080 – 4,160 Hours	After 4,160 Hours
Part-Time Paramedic I	\$38.83	\$40.07	\$41.51
Part-Time Paramedic II	\$43.71	\$45.10	\$46.51

Clarity Note:

As per Letter of Understanding #12, upon certification the PCP staff will receive a one-time percentage increase to their base wage which will be the equivalent of \$0.25 per hour.

28.02 Employees will be re-classified to a lower rated classification only due to disciplinary reasons, inability to perform the job, exercise of seniority rights in the event of lay off or as a result of a de-certification as outlined in Article 11.07. The Employer agrees that it will not create any new job classifications in the Bargaining Unit for the term of this Agreement other than those classifications referred to in this Agreement.

28.03 Placement on Wage Grid Upon Change in Status

The parties agree that employees who transfer from full-time status to part-time status or vice versa from April 1, 2002 will be placed on the wage grid at the same step that they had achieved in their previous status (e.g. Step 2 to Step 2).

28.04 New Classifications

- (a) When a new classification (which is covered by the terms of this collective agreement) is established by the Employer, the Employer shall determine the rate of pay for such new classification and notify the Union of the same. If the Union challenges the rate, it shall have the right to request a meeting with the Employer to endeavor to negotiate a mutually satisfactory rate. Such request will be made within ten (10) days after the receipt of the notice from the Employer of such new occupational classification and rate. Any change mutually agreed to resulting from such meeting shall be retroactive to the date that notice of the new rate was given by the Employer. If the parties are unable to agree the dispute concerning the new rate may be submitted to arbitration as provided in the Agreement within fifteen (15) days of such meeting. The decision of the Board of Arbitration (or Arbitrator as the case may be) shall be based on the relationship established by comparison with the rates for other classifications in the bargaining unit having regard to the requirements of such classifications.
- (b) The parties further agree that any change mutually agreed to or awarded as a result of arbitration shall be retroactive only to the date that the Employer made the change to the classification.

ARTICLE 29 – DURATION AND RETROACTIVITY

29.01 The Collective Agreement shall be effective April 1st, 2020 and expire March 31st, 2023. It shall continue in effect from year to year thereafter unless either party gives notice to the other party of its desire to amend or terminate this Agreement. Any such notice must be in writing and given in the ninety (90) day period prior to March 31st, 2023. Nothing in this Collective Agreement will be retroactive except as specified.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #1 – Part-Time Employees

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
(hereinafter referred to as the "Union")**

WHEREAS the Employer and the Union have decided that the terms and conditions of employment for part-time employees shall be included in a separate Letter of Understanding:

NOW THEREFORE, it is agreed as follows:

1. The terms and conditions of employment for part-time employees of the Employer, being those employees who are not regularly employed for more than twenty-four (24) hours per week, shall be as follows:

2. **Probation Period**

Upon completion of 1040 hours of work in a classification, a part-time employee shall be considered as having completed his/her probationary period should he be subsequently hired as a full-time employee in his/her classification. The Employer may grant an extension of the probationary period in a classification where the employee has not had an adequate opportunity to meet the requirements of the job.

3. **Uniforms**

The Employer agrees to provide initially part-time employees with three (3) shirts, two (2) moisture wicking shirts, two (2) pair of pants, and one (1) pullover sweater and one (1) black trouser belt and one (1) parka (equivalent to full-time). Replacement of these items will be on a justified needs basis rather than annual.

The Employer agrees to provide female cut uniforms at the employee's request.

The Employer shall reimburse an employee up to one hundred and fifty dollars (\$150) every two (2) calendar years toward the cost of safety boots *submission of a receipt(s) shall constitute proof that the boots have been purchased.*

4. **Seniority**

Part-time seniority shall be based on all hours worked by the part-time paramedics for the Employer. No employee may be credited with more than two thousand and eighty (2080) hours per one (1) year seniority in any calendar year. In addition, any employee who was in the employment of the Employer on August 29th, 2000 will be credited with accumulated seniority based on the Brant County Ambulance Service Limited list, dated December 31st, 1999 *plus all hours worked from December 31st, 1999 until August 28th, 2000 as recorded in the log books.* This seniority ranking shall be used in determining preference or priority for promotion, lay offs, and recall.

For the purposes of determining full-time seniority in the event a part-time employee is successful in achieving full-time status, it is agreed that 2080 hours worked as a part-time employee equals one (1) year of full-time seniority. Seniority ranking shall be used for determining priority for base selection, vacation scheduling and training.

Part-time seniority shall terminate if the employee is discharged for just cause or voluntarily quits his/her part-time employment. An employee who is not on an authorized leave of absence (due to disability, union leave, pregnancy and/or parental leave) and if scheduled, fails to work four (4) of his/her available shifts may be terminated at the Employer's discretion.

Part-time employees are expected to give the Employer their availability to work at **least sixteen (16) shifts per month of which five (5) shifts** must be on the weekends and/or afternoons, unless on leave. Any availability withdrawn by the employee shall be replaced with equal availability to work within the remainder of the scheduling period. Any such updates will not reduce the number of shifts that the employee is available to work.

A day shift shall be defined as any shift with a start time commencing from 6 a.m. to 10 a.m.

An afternoon shift shall be defined as any shift with a start time commencing from 10 a.m. to 4 pm.

A night shift shall be defined as any shift with a start time commencing after 4 p.m.

The end of the weekend is defined as 0600h on Monday.

Should a current shift pattern (i.e., afternoon shift) be removed from the master schedule, the parties will meet to review and revise the minimum availability.

5. **Lay-off and Recall**

In the event of a lay off of a part-time employee, employees shall be laid off in reverse order of their seniority, provided they have the qualifications and are able to do the required work. Recall shall be in order of seniority for employees qualified and able to do the work.

6. **Wage Schedule**

Wages: See Article 28 of the Collective Agreement.

Part-time employees will have full movement through the three steps in Article 28 with service starting to be accumulated based on regular hours worked with the Employer starting April 1st, 2002. Part-time employees transferring to full-time will be placed at the same step on the pay grid. (e.g. Step 2 to Step 2).

Employees shall be paid time and one half when working in excess of his/her daily scheduled hours.

Overtime after eighty-four (84) hours in the two (2) week period.

7. **Students**

Students will receive the same wage rate as a part-time employee and will be considered as covered by the part-time Letter of Understanding except that a student may regularly work more than twenty-four (24) hours per week during the period May 1st to September 30th only.

8. **Job Postings**

For persons being considered for a full-time position, provided they have the qualifications and are able to do the work, the Employer will give first consideration to a part-time employee in order of seniority.

9. **Statutory Holidays**

Statutory holiday entitlement for part-time employees will be calculated and paid out in accordance with the *Employment Standards Act*. Effective January 28th, 2014, all part-time employees will receive twelve percent (12%) of regular earnings on all hours worked in lieu of earned health and welfare benefits. The percentage in lieu for a part-time employee who is enrolled in the OMERS plan shall be reduced by the amount of the Employer's contribution (or the Employer's deemed contribution in the event of a contribution holiday) as dictated by OMERS.

10. **Vacation**

Part-time employees shall be paid vacation on the following basis:

# OF HOURS	% IN LIEU	FT EQUIVALENT
1-10,400	4%	0-5 Years
10401+	6%	5 Years+

11. **OMERS Pension Plan**

Subject to OMERS enrolment requirements, part-time employees may participate in the OMERS Pension system.

12. **Quarantined Lost Shifts**

Previously scheduled shifts lost by a part-time paramedic as a result of being quarantined by a certified medical practitioner, under the authority of the Medical Officer of Health because of a job related or other exposure shall be treated as a leave of absence with pay for the previously scheduled shifts during the quarantine period, provided there is documented proof of the quarantine and the quarantine period.

13. **Part-Time Employees – Benefits**

Part-time employees who average a minimum of sixty (60) hours per month over a one (1) year time period may purchase dental and/or prescription drug coverage at one hundred percent (100%) cost to the employee. Premiums to be deducted on the first pay of every month

14. **Part-Time Employees – Terms**

The only terms of this Agreement that apply to employees classified as part-time employees are those that are set out below:

Article 1, Article 2, Article 3, Article 4, Article 5, Article 6, Article 7, Article 8, Article 9, Article 10.03, Article 10.04, Article 10.05, Article 10.06, Article 10.07, Article 10.08, Article 10.09, Article 10.10, Article 10.11, Article 10.12, Article 11.06(b), Article 11.07, Article 11.12, Article 11.13, Article 12, Article 13, Article 14.03, Article 14.04, Article 14.05, Article 14.06, Article 14.07(b), Article 14.09, Article 14.10, Article 14.11 (iv), Article 15, Article 16.02(a), Article 16.05, Article 17.06, Article 18.08, Article 18.09, Article 19.01, Article 20.04, Article 22.05, Article 22.06, Article 23, Article 24.01, Article 24.03, Article 25, Article 26, Article 27, Article 28, Article 29, Letter of Understanding #2, Letter of Understanding #3, Letter of

Understanding #4, Letter of Understanding #9, Letter of Understanding #10 and Appendix "A".

15. Temporary Part-Time Employees

The Parties agree as follows:

Permanent part-time employees will be given the first opportunity to replace full-time employees who are absent. Such employees would continue to be treated as part-time employees for benefit entitlement.

Temporary part-time employees may be hired to backfill for part-time employees who are temporarily acting in a full-time position or to provide additional summer coverage.

The temporary part-time employees pay Union dues and are covered under the part-time provisions of the Collective Agreement, except that they do not accrue seniority and can be released at the end of their contract without recourse to the grievance procedure.

Should a temporary part-time employee be hired into a permanent position without a break in service they will be credited with seniority once they have completed the probationary period back to their hire as a temporary employee.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #2 – Retroactivity

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

New rates shall be effective upon receiving a signed Collective Agreement retroactive to April 1st, 2020.

Retroactivity on wages and shift premiums will be provided by separate cheque or deposit.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

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Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #3 – Lunch Break

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

- (1) A one-half ($\frac{1}{2}$) hour meal break will be attempted for each crew, in the fourth, to sixth and the ninth to eleventh hour of a shift. The crew will attempt to take their meal break in the fourth to sixth and the ninth to eleventh hour of a shift. The crew will not be assigned a code 1 or code 2 until their meal break is completed. Emergency calls do have priority therefore, the crew will not be exempt from responding to priority 3, 4 or 8 calls during their meal break period. Effective communication between the crew and the dispatcher is essential.
- (2) During all shifts, the Brant EMS duty officer will ensure all crews on duty will have or are anticipated to receive their meal breaks.
- (3) CACC will notify the Brant EMS duty officer if at any time a crew has or may miss a meal break.
- (4) Provided emergency coverage is maintained. The duty officer in conjunction with the ACO will consider facilitating meal breaks, by doubling up crews at a base/relocating a crew to another base/requesting a vehicle that has had their meal break to cover off a crew that has not. The crew shall be able to request the above as well if required.
- (5) If a crew does not get their break during their designated meal break window, the Dispatcher will attempt to provide their meal break at the earliest possible time.
- (6) When a crew has been in their home base for thirty (30) minutes or longer during the applicable two (2) hour period, they will be deemed to have taken their meal break.
- (7) The dispatcher will always attempt to allow the crew to have their meal break at their home base. However, since call volume, standbys, etc., may dictate otherwise, the dispatcher will notify the crew in advance.

- (8) When a crew is not in their home base, the ACO will ensure the following has occurred:
- (i) The crew has been notified that they are on their meal break upon arriving at a base.
 - (ii) The crew has been provided an opportunity to pick up their lunch from their home base if necessary or where unable to facilitate this, to pick up their lunch in the vicinity close to their standby location.
 - (iii) Where the crew is not able to pick up their lunch as per (ii) then the meal allowance will be paid.
- (9) The crew must always remain immediately available for radio contact with the dispatcher.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #4 – Loss of Licence

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

An employee who has his/her driver's licence temporarily revoked will be considered on a leave of absence without pay and benefits in keeping with the Employer's Leave of Absence policy for the duration of the licence suspension to a maximum of twenty-four (24) months.

Where an employee loses his/her licence through no fault of his/her own, i.e. error of MTO, lost documents, delay in receiving documents, such employee shall be placed in a non-driving roll until the error has been rectified.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #5 – Base Selection

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

Base selections will occur every twelve (12) months in September for implementation for the next January. Where the Employer has revamped bases, schedules, or complement they shall determine the numbers of employees, classification and shifts at each base.

In the event that another vehicle is put on the road, the employer will post the new positions in accordance with Article 10.13 and this letter. The remaining positions will be filled by the successful candidates for the new vehicle. This will not require a new vacation selection process or base pick.

It is the intent of the employer to have an ACP on every Ambulance on the master schedule.

Employees shall be assigned according to their preferences in order of seniority within their classification.

Where a position is to be filled, full-time employees shall be entitled to transfer in order of seniority and the remaining position shall be posted.

Nothing in this Agreement precludes the Employer's right to temporarily reassign an employee to an alternate base for training purposes.

The parties agree that employee re-assignments will be offered on the following basis:

- (1) on a voluntary basis and then;
- (2) in reverse order of seniority.

The parties agree that no employee will be re-assigned as a result of an external placement i.e. preceptoring.

Employees shall have ten (10) minutes once contacted, or from their scheduled selection time to make a selection. Should an employee be working for the employer and be on a

call then the process shall pause until the employee is able to call in or be contacted. If a selection is not made within the allotted time the process shall continue and the employee will be permitted to select once they contact the employer.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

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Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #6 – Vacation Entitlement

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

The parties agree that full-time employees, who transferred from Brant County Ambulance on August 29th, 2000 until this ratification to a full-time position with the County of Brant Ambulance Service, shall have their full-time vacation entitlement recognized by the County of Brant Ambulance Service.

The parties agree that part-time employees, who transferred to full-time from August 29th, 2000 until ratification, shall have their vacation entitlement calculated based on their seniority.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

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Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #7 – ACP Protocol

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

The parties agree to meet to discuss Response Protocols and criteria for Advanced Care Paramedics.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

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Karen Dropko

Hillary Henderson

Paul Attard

**LETTER OF UNDERSTANDING #8 – Overtime Distribution
and Overtime Grievances**

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

The Parties agree as follows:

A form is to be developed between the Union and the Employer to be used by the employees to notify Management when they are not available for overtime shifts. The form shall contain a start and finish date of the unavailability and shall be attached to the call in list when completed. Subject to the *Employment Standards Act* restrictions and unless otherwise notified, an employee shall be considered available for overtime shifts at the expiration of the form and be offered overtime as per the current procedure. Failure to offer overtime while not available shall not be considered grievable.

The employer will cooperate with the unit steward, in providing available information on overtime call in, in order to pre-investigate any grievance inquiries from its members.

If the Employer is found to be at fault, overtime grievances will be settled by the grievor being awarded an open shift at the applicable rate of overtime pay. The grievor will be allowed access to the schedule to choose an open shift. The shift shall occur within a reasonable time frame given consideration to how far in advance the schedule has been completed but in no case shall the shift occur later than sixteen (16) weeks. The sixteen (16) week time frame shall begin with the date the grievance is awarded. Where an employee becomes absent from work prior to working the awarded shift due to WSIB, pregnancy/parental leave, STD/LTD, and authorized paid or unpaid leave of absence, the sixteen (16) week time frame to work the shift shall begin upon their return to full duties. An employee who has enrolled in the Employer funded ALS program will have their time frame to work the shift begin at the start of preceptoring should they so desire. No one shall lose their opportunity to choose a shift due to no shifts being available.

None of the above provisions shall be retroactive.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

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Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #9 – Job Sharing

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

Preamble:

Job Sharing refers to the concept of a written agreement where two (2) equally qualified Paramedics divide the hours and responsibilities of one (1) Full-time Paramedic position (FTE). All Job Sharing Agreements must be fair and equitable, not cost in excess of one (1) full-time position and be in accordance with the County of Brant Policies and Procedures, the County of Brant EMS Policies and Procedures and any applicable legislation. Both Paramedics must have the ability, experience and qualifications to perform the duties and responsibilities of the position which is to be shared. Each Job Sharing Agreement will adhere to the following Letter of Understanding in the Collective Agreement and will be further defined by a written agreement signed by both parties entering the job sharing arrangement. All Job Sharing Agreements must be approved by the County of Brant Director of Ambulance Services.

Definitions and Specifications:

- (1) Job Sharing, for the purpose of this agreement, shall be defined as the sharing of the hours and responsibilities of a normally scheduled Full-time Paramedic (one [1] FTE) by two (2) existing Paramedics of the same classification. Job Sharing is splitting of one (1) full-time paramedic into two (2) parts totaling eighty (80) to eighty-four (84) hours per pay period, dependent on the position being shared. Any Paramedic being considered for a Job Sharing Agreement shall have satisfactorily completed their probationary period in accordance with the Collective Agreement.
- (2) Once a Full-time Paramedic has indicated their desire to job share in writing to the Duty Manager – Operations of the County of Brant Ambulance Service or designate, at least sixty (60) days prior to the requested start date, the secondary Paramedic component of the Job Sharing Agreement shall be determined subsequent to a posting, as per the Collective Agreement, by seniority.

- (3) It is understood and agreed that should a Full-time Paramedic apply for the secondary portion of the Job Sharing Agreement, their current full-time position shall be posted as a temporary full-time job. Should the Job Sharing Agreement be terminated for any reason, this Paramedic shall assume their previous role.
- (4) Any Part-time Paramedic that applies for the secondary part of a Job Sharing Agreement must provide the management a six (6) month schedule of availability that demonstrates a minimum of fifty percent (50%) of a Full-time Position (FTE), which equals a minimum of eighty (80) to eighty-four (84) hours in two (2) pay periods, dependent on the position being shared, to be considered available for job sharing responsibilities. If such position is posted and there are no qualified or interested applicants, the requesting Full-time Paramedic shall retain their current Full-time position in its entirety.
- (5) It is understood and agreed that no more than two (2) Job Sharing Agreements (FTE positions) will exist at any given time within the current complement of Full-time positions at the County of Brant EMS. Job Sharing Agreements will therefore be granted to requesting Paramedic with the highest seniority at the time of request. Once an agreement is approved and/or in place, there will be no termination of the agreement based on the later request of a more senior Full-time Paramedic wishing to enter a job sharing position.
- (6) The Job Sharing Agreement shall be a minimum for one (1) year and shall not exceed a maximum of two (2) years. If the Paramedic would like to Job Share for longer than two (2) years, the Paramedic will be required to re-submit a Job Share request. Such request will be considered by seniority.
- (7) A review of the Job Sharing Agreement shall be conducted yearly between each Paramedic involved, the Union, a member of the Leadership Team and a member of the Human Resources Division.

Terms and Conditions

- (1) Both Paramedics involved in the Job Sharing Agreement will prepare an agreed upon schedule of hours within that Full-time position in accordance with the current platoon/base schedule for the County of Brant Ambulance Services. Each participant will maintain fifty percent (50%) of an FTE, to be assessed as eighty (80) to eighty-four (84) hours in two (2) consecutive pay periods. The chosen schedule of hours within the Job Sharing Agreement is to be signed by both participating Paramedics and submitted to the Duty Manager – Operations of the County of Brant EMS a minimum of two (2) calendar months (four [4] pay periods) prior to the commencement of that schedule for approval.

- (2) The Paramedics in the Job Sharing Agreement shall not accrue overtime hours for any shift accepted unless they exceed eighty-four (84) hours in a pay period.
- (3) Each Job Sharing Paramedic shall agree to pay fifty percent (50%) of premium for fixed cost of dental, life and long term disability and Extended Health Care Benefits provided under the Collective Agreement. Premium payments required of Paramedics because of Job Sharing Agreements will be made by payroll deduction, and as such, written authorization from such Paramedics for the payroll deduction must be provided to the County of Brant Employee and Payroll Services as a condition precedent to their participation in the benefit program.
- (4) Each Job Sharing participant shall also accrue paid Vacation and Sick Leave as per the Collective Agreement on a pro-rated basis of fifty (50%) percent of a Full-time Paramedic.
- (5) Statutory Holidays that are not worked, each paramedic in the job share will receive a prorated portion of the stat holiday pay based on hours of work in the previous six (6) weeks.
- (6) Paramedics participating in a Job Sharing Agreement shall receive pro-rated uniform allotments on an annual basis of fifty (50%) percent of a Full-time Paramedic. They shall receive Safety Footwear allotments as detailed in the Collective Agreement.
- (7) Any Paramedic in a Job Sharing Agreement that was previously a Part-time Paramedic remains eligible to apply for any permanent Full-time position vacancies should they arise within the County of Brant Ambulance Services.
- (8) Both Paramedics in the Job Sharing Agreement shall retain their current seniority date throughout the Job Sharing Agreement as per the Collective Agreement.
- (9) Job sharing participants shall be eligible to be assigned ad hoc shifts that come available outside of their Job Sharing Agreement as per Article 14.09 in the Collective Agreement.
- (10) Job sharing participants are eligible to participate in shift changes as per Article 22.06 in the Collective Agreement.

Discontinuation of the Job Sharing Agreement

- (1) If one (1) job sharing participant wishes to leave the arrangement, after the minimum one (1) year period, written notification of this shall be submitted to the Duty Manager – Operations of the County of Brant Ambulance

Service or designate a minimum of sixty (60) days prior to the requested termination date.

- (2) Either party may, providing extenuating circumstances, terminate any/all Job Sharing Agreements with sixty (60) days written notice for operational reasons, as defined in a satisfactory way, to the Union or Employer, on a case by case basis.
- (3) If the Paramedic requesting termination of the arrangement is the Secondary Paramedic, the Primary Paramedic has the option of returning to their former position in its entirety. The Primary Paramedic in said agreement may:
 - (a) Return to his/her former position in its entirety.
 - (b) If the offer of return to their Full-time position is declined and the continuance of a Job Sharing Agreement is requested for their FTE, the vacant secondary portion of the job sharing position shall be posted and filled as per this Letter of Understanding and the Collective Agreement.
 - (c) If the posting is not filled by a qualified or interested Paramedic, the current job share participant shall be returned to their Full-time position in its entirety.
- (4) If the Paramedic requesting termination of the arrangement is Primary Paramedic, both Job Sharers shall return to their original positions in their entirety.
- (5) A Paramedic who initiates the termination of the arrangement will not be permitted to apply for a new Job Share Agreement for the period of one (1) year.
- (6) In the event of a platoon/base spot rotation selection process within the County of Brant EMS, both Job Sharers will participate (if required/requested).
- (7) It is understood and agreed that the Employer may terminate the Job Sharing Agreement without notice or payment in lieu of notice for just cause which, for the purpose of this Letter of Understanding, shall be defined as any act which, by law, justifies the dismissal of the Paramedic/Employee.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #10 – APC Training for PT Staff

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

In the event that the Employer provides Advance Care Paramedic training to Paramedic I's, the training will be made available to part time Paramedic I's should there be any available space after full time Paramedic I's apply. All criteria to be accepted to the program are the same for part time staff as full time staff. Should there be more part time staff that apply than available spots, placements will be made based on highest seniority.

The Employer agrees to pay one hundred percent (100%) of the tuition associated with the Advanced Care Paramedic training (at a Community College or in house training) as well as the cost of the books, and preceptor stipend. In the event that the employee be unsuccessful at becoming certified after the program, the employee will be responsible for refunding the Employer for fifty percent (50%) of all costs covered by the Employer.

As a condition of receiving ACP training, a part time employee who successfully completes such training shall not terminate his/her employment with the Employer for a three (3) year period subsequent to the completion of the training. Should the employee terminate his/her employment in the first year subsequent to the completion of the training, he/she will be required to reimburse the Employer for one hundred percent (100%) of the tuition, fifty percent (50%) of the cost in the second year, and twenty-five percent (25%) of the cost in the third year.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #11 – Float Staff

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

For the purpose of vacation, sick and other forms of employee leave and to reduce the number of Part-time employees working full-time hours (LOU #9) the parties agree to the following:

- (a) The Employer agrees to maintain "float" employees.
- (b) The parties agree that these positions may require frequent base changes and different start times.
- (c) Unless assigned a specific shift through the scheduling process the float staff will default to 0 Base at 0700h or 1900h. The parties agree that once at 0 Base the employee may be redeployed to another location based on operational demand.
- (d) The float employee may be required to report to other bases or start times based on operational demand. The Employer will notify Employee of change of base within twelve (12) hours of the next shift. The Employer will notify the Employee of change of start time up to plus or minus two (2) hours with twenty-four (24) hours notice.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

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Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #12 – IV Starts

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

- (a) Employer agrees to provide IV certification, with the number of employees trained at the discretion of the employer based on operational needs.
- (b) The Employer will cover the cost of the training. The employee will be paid for their time in the clinical and certification portion of the training, but not any time associated with classroom or online training.
- (c) Full-time PCP staff will be given priority for available spaces before being opened up to part-time PCP staff. Selection will be based on seniority and the selection criteria of the certification program.
- (d) Upon certification, the PCP staff will receive a one-time percentage increase to their base wage which will be the equivalent of \$0.25 per hour.
- (e) IV certification is mandatory for all new PCP staff hired.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard

LETTER OF UNDERSTANDING #13 – Investigation Checklist

BETWEEN:

**THE CORPORATION OF THE COUNTY OF BRANT
(hereinafter referred to as the "Employer")**

- and -

**ONTARIO PUBLIC SERVICE EMPLOYEES UNION
On behalf of its Local 256
(hereinafter referred to as the "Union")**

The parties agree to meet on an ad hoc basis to review Investigation process and checklist.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard

COUNTY OF BRANT AMBULANCE SERVICE
2018 UNIFORM ORDER

MAXIMUM 400 POINTS - FULL TIME

NAME: _____

PART TIME

MINIMUM 100, MAXIMUM 200 POINTS - PRORATED

DATE SUBMITTED: _____

ITEMS	SIZE	QTY	POINTS	TOTAL
Button Uniform Shirt w/cresting	Size _____ Neck Size _____		25	
Button Uniform Shirt Cool Max w/cresting	Size _____ Neck Size _____		45	
Button Uniform Shirt - Long Sleeve w/cresting	Size _____ Neck Size _____		27	
Golf Shirt Two Tone w/cresting (Blauer)	Size _____ Sm to XXXL		94	
Full Zip Hi Viz/Black Fleece Sweater - Bulk order only	Size _____ Sm to XXXL		75	
T-Shirt - Short Sleeve Plain	Size _____ Sm to XXXL		6	
T-Shirt - Short Sleeve Front Silkscreened Logo	Size _____ Sm to XXXL		20	
T-Shirt - Long Sleeve Plain	Size _____ Sm to XXXL		11	
T-Shirt - Long Sleeve Front Silkscreened Logo	Size _____ Sm to XXXL		24	
Turtle Neck Shirt Paramedic at Neck Embroidered	Size _____ Sm to XXXL		20	
T-Shirt - Short Sleeve - Moisture Wicking - no embroidery	Size _____ Sm to XXXL		20	
Mock Turtle - Long Sleeve - Non Moisture Wicking - no embroidery	Size _____ Neck Size _____		25	
Paramedic Pants with 1" strip and velcro	Mens _____ Ladies _____			
	Waist _____		60	
	Inseam _____ Outseam _____			
Summer Paramedic Pants	Mens _____ Ladies _____			
	Waist _____		60	
	Inseam _____ Outseam _____			
Leather Belt (order 1 size larger than pants)	Waist _____		22	
Duty Belt - Inside (order 1 size larger than pants)	Waist _____		20	
Duty Belt - Outside (order 1 size larger than pants)	Waist _____		35	
Yukon Hat	Size _____		28	

LETTER OF COMMITMENT

January 31, 2008

Glen Cunnane
Bargaining Team Chair, Local 256
Ontario Public Service Employees Union
L256 – The Corporation of the County of Brant

Dear Mr. Cunnane:

The Employer recognizes that there are occasions where there are difficulties contacting supervisors due to their unavailability. Therefore where the Employer determines that there is an operational need to reassign temporarily a shift supervisor from his/her regular schedule as part of an ambulance crew to other duties, part-time staff will be offered the opportunity to work those hours of work required to maintain normal crewing during this reassignment. These hours of work will be offered in accordance with Article 14.09 – Open Shifts.

Yours truly,

Rick Fiebig, CA
Chief Administrative Officer
The Corporation of the County of Brant

APPENDIX “A” – Employee Seniority Listing

Brant County Ambulance Service Limited

Effective December 31, 1999

Name	Date Commenced Employment MM/DD/YY
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FULL-TIME

McTavish, Stephen.....	08/27/79
Dungey, David.....	08/27/82
Smale, Gary.....	09/30/82
Fegan, Paul.....	12/01/83
Normore, Dane.....	01/06/84
Grundy, Paul.....	09/07/84
Vining, Dale.....	01/03/86
Silverthorne, Mike.....	09/01/86
Smith, Mark.....	02/09/87
Buckley, Wayne.....	09/06/87
Robinson, Kevin.....	03/10/89
Coyle, Robert.....	02/02/90
Weinstein, Stephen.....	03/30/90
Tuori, Vito.....	09/24/90
Turner, Mary Ann.....	10/15/90
Finnie, Mark.....	06/26/92
Polgar, Mike.....	07/24/92
Slater, Bill.....	01/05/96
Mady, Robert.....	01/02/98
Turner, Dale.....	01/02/98
Patterson, Dave.....	12/05/98

PART-TIME

Stretch, Kevin.....	16,507
Cline, Craig.....	12,144
Kolaritsch, Gwen.....	8,812
Bomberry, Ron.....	5,738
Cunnane, Glen.....	5,392
Savory, Bill.....	5,007
Jodoin, Allan.....	4,184
Urbina, Lisa.....	3,718
Caravaggio, Tony.....	3,231
Carlin, Sean.....	2,985
Monarch, Greg.....	2,843
Martin, Gord.....	2,566
Globe, Darren.....	2,388
Sault, Eric.....	1,630
Little, David.....	1,168
Kokanie, Sharla.....	886
Emmons, Tracey.....	825
Seth, Mike.....	741
Weir, Jeff.....	655
Stacey, Don.....	639
Belbeck, Julie.....	622
Demaiter, Ron.....	570
Foster, Stephen.....	506

ESSENTIAL AMBULANCE SERVICES AGREEMENT

AGREEMENT MADE PURSUANT TO THE AMBULANCE SERVICES COLLECTIVE
BARGAINING ACT, 2001

BETWEEN:

THE CORPORATION OF THE COUNTY OF BRANT
(Hereinafter called the "Employer")

- and -

THE ONTARIO PUBLIC SERVICE EMPLOYEES UNION
and its Local 256
(Hereinafter called the "Union")

ESSENTIAL AMBULANCE SERVICES AGREEMENT

The parties to this Essential Ambulance Service Agreement (EASA) confirm that they share the following understanding with respect to dispute resolution as it pertains to land ambulance service collective bargaining:

1. The parties recognize that it is in the mutual interest of the parties to establish a mechanism that will allow for the resolution of collective bargaining disputes without the risk of interruptions of land ambulance services in the event of a collective bargaining impasse.
2. The parties recognize that land ambulance services are an essential emergency service and that this EASA is made in accordance with the ASCBA.
3. The parties agree that this ESA describes the number of paramedics represented by the Union which is minimally required to provide ambulance services at the Stations of the Employer in the case of a strike or lockout.
4. Paramedics required to perform services under this ESA are those persons employed by the Employer in the classifications of "Primary Care Paramedic" and "Advanced Care Paramedic" and who are represented by the Union.
5. In accordance with s. 15(2) of ASCBA the terms and conditions of the paramedics who perform services under this ESA shall be in accordance with those terms and conditions specified in the collective agreement between the parties. Where the terms and conditions of the Collective Agreement or any practice are inconsistent with this ESA (particularly, but in no way limited to, hours of work and scheduling) the provisions of this ESA shall govern.
6. Pursuant to Section 4 of the *Ambulance Services Collective Bargaining Act* (ASCBA), all paramedics employed by the Employer and represented by the Union are essential workers and are required to work their regular shifts in accordance with the posted master schedule and perform their regular duties, including any overtime or "special event" shifts. As such, the parties recognize that, pursuant to Section 18 of ASCBA, the Union could not engage in a meaningful strike and the Employer could not engage in a meaningful lockout of employees.
7. Therefore, based on this mutual understanding, the Employer and the Union agree to the following terms:
 - (a) If a conciliation officer appointed under Section 18 of the *Labour Relations Act* (1995) is unable to effect a collective agreement within the time allowed under Section 20 of the Act, and the Minister subsequently notifies the parties under Section 21 of the *Labour Relations Act* (1995) that he/she does not consider it advisable to appoint a conciliation board, the parties

shall submit any issues remaining in dispute to final and binding arbitration in accordance with this EASA.

- (b) Within seven (7) days of the Minister's notification to the parties under Section 21 of *Labour Relations Act (1995)*, the Union or the Employer shall apply to the Ontario Labour Relations Board pursuant to Section 18 of ASCBA for a declaration and order for final and binding interest arbitration. The other party shall consent to this application. The parties will jointly request that the Board deal with the matter on an expedited basis and that the Board issue its order.
- (c) Upon the Board issuing its order pursuant to paragraph (b) above, the parties will mutually co-operate to select a sole arbitrator within twenty-one (21) days and to have the hearing before the arbitrator commence as quickly as the arbitrator is available. If the parties are unable to agree to a sole arbitrator, the Minister of Labour shall appoint the arbitrator.
- (d) In consideration of the foregoing and notwithstanding Section 79 of the *Labour Relations Act (1995)* the parties agree as follows:
 - The Union, on its own behalf and on behalf of the paramedic employees it represents agrees it will not authorize, support or condone in any way any strike (as defined in Section 1 of *Labour Relations Act (1995)*) or any withdrawal or limitation of land ambulance services and will make every effort to ensure that land ambulance employees do not engage in any withdrawal or limitation of their services.
 - The Union, on its own behalf and on behalf of the paramedic employees it represents agrees it will not authorize, support or condone in any way any job action including, but not limited to: the display of any buttons, stickers or other media on uniforms, vehicles, stations or any other property of the Employer, the alteration of uniform items or any change in the composition of the uniform required by the Employer. The union will however be able to communicate with paramedic employees via newsletter, Union bulletin board, web sites and other electronic media.
 - The Employer agrees that it will not lock out its paramedic employees.
 - Neither the Union nor the Employer shall alter any term or condition of employment under the Collective Agreement in effect at the time of notice is given by the Minister under Section 21 of the *Labour Relations Act (1995)* prior to the issuance of the award of the arbitrator except by mutual agreement in writing.

- (e) It is agreed that this Agreement constitutes an Essential Ambulance Services Agreement for the purposes of Section 3 of ASCBA and that it may be revoked or amended in accordance with the provisions of Section 8 (2) of ASCBA.
- (f) The parties agree that in any case of alleged breach of the provisions of this EASA, enforcement proceedings may be commenced before the Ontario Labour Relations Board in accordance with ASCBA and any relevant provisions of the *Labour Relations Act*.

Signed this _____ day of _____, 2022.

**THE CORPORATION OF THE
COUNTY OF BRANT**

**ONTARIO PUBLIC SERVICE
EMPLOYEES UNION**

Russ King

Steve Caie

Cindy Stevenson

Warren Schween

Karen Dropko

Hillary Henderson

Paul Attard